

SOLICITATION/CONTRACT/ORDER FOR COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

NOTE: OFFEROR TO COMPLETE BLOCKS 12, 17, 23, 24 & 30			1. REQUISITION NUMBER F369403-26-2000005	PAGE 1 OF 68
2. CONTRACT NUMBER	3. AWARD/EFFECTIVE DATE	4. ORDER NUMBER	5. SOLICITATION NUMBER 36C78626Q50131	6. SOLICITATION ISSUE DATE 05/08/2026
7. FOR SOLICITATION INFORMATION CALL:	a. NAME Ralph Crum		b. TELEPHONE NUMBER (No collect calls)	8. OFFER DUE DATE / LOCAL TIME 05/29/2026 15:00 CT

9. ISSUED BY NATIONAL CEMETERY ADMIN (786) NATIONAL CEMETERY ADMINISTRATION DEPT OF VETERANS AFFAIRS 18434 JOPLIN RD. TRIANGLE, VA 22172	CODE 36C786	10. THE ACQUISITION IS ☐ UNRESTRICTED OR ☒ SET ASIDE: 100.00 % FOR ☐ SMALL BUSINESS ☐ WOMEN-OWNED SMALL BUSINESS (WOSB) ☐ NORTH AMERICAN INDUSTRY ☐ HUBZONE SMALL BUSINESS ☐ ECONOMICALLY DISADVANTAGED WOMEN- OWNED SMALL BUSINESS (EDWOSB) ☐ CLASSIFICATION STANDARD (NAICS): 561612 ☒ SERVICE-DISABLED VETERAN-OWNED ☐ SIZE STANDARD: \$29 million SMALL BUSINESS (SDVOSB) ☐ 8(A)
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11. DELIVERY FOR FREE ON BOARD (FOB) DESTINATION UNLESS BLOCK IS MARKED ☒ SEE SCHEDULE	12. DISCOUNT TERMS 0 Days: 0.00 % 0 Days: 0.00 % 0 Days: 0.00 % 0 Days: 0.00 %	13a. THIS CONTRACT IS RATED ORDER UNDER THE DEFENSE PRIORITIES AND ALLOCATIONS SYSTEM – DPAS (15 CFR 700) ☐	13b. RATING 14. METHOD OF SOLICITATION ☒ REQUEST ☐ INVITATION ☐ REQUEST FOR FOR BID FOR QUOTE (RFQ) (IFB) PROPOSAL (RFP)
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15. DELIVER TO CODE	16. ADMINISTERED BY NATIONAL CEMETERY ADMIN (786) NATIONAL CEMETERY ADMINISTRATION DEPT OF VETERANS AFFAIRS 18434 JOPLIN RD. TRIANGLE, VA 22172 CODE	36C786
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17a. CONTRACTOR/ OFFEROR CODE	FACILITY CODE	18a. PAYMENT WILL BE MADE BY TUNGSTEN http://www.tungsten-network.com/customer-campaigns/ veterans-affairs/ CODE	NCA-VACO
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TELEPHONE NUMBER

☐ 17b. CHECK IF REMITTANCE IS DIFFERENT AND PUT SUCH ADDRESS IN OFFER	18b. SUBMIT INVOICES TO ADDRESS SHOWN IN BLOCK 18a UNLESS BLOCK BELOW IS CHECKED ☐ SEE ADDENDUM
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19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES (Use Reverse and/or Attach Additional Sheets as Necessary)	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT
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Unarmed security guard services at the National Memorial Cemetery of

Arizona . Please see performance work statement and instructions to offerors

25. ACCOUNTING AND APPROPRIATION DATA	26. TOTAL AWARD AMOUNT (For Government Use Only)
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☒ 27a. SOLICITATION INCORPORATES BY REFERENCE (FEDERAL ACQUISITION REGULATION) FAR 52.212-1, 52.212-4. FAR 52.212-3 AND 52.212-5 ARE ATTACHED. ADDENDA	☒ ARE ☐ ARE NOT ATTACHED
☐ 27b. CONTRACT/PURCHASE ORDER INCORPORATES BY REFERENCE FAR 52.212-4. FAR 52.212-5 IS ATTACHED. ADDENDA	☐ ARE ☐ ARE NOT ATTACHED

☒ 28. CONTRACTOR IS REQUIRED TO SIGN THIS DOCUMENT AND RETURN ____ COPIES TO ISSUING OFFICE. CONTRACTOR AGREES TO FURNISH AND DELIVER ALL ITEMS SET FORTH OR OTHERWISE IDENTIFIED ABOVE AND ON ANY ADDITIONAL SHEETS SUBJECT TO THE TERMS AND CONDITIONS SPECIFIED.	☐ 29. AWARD OF CONTRACT: REFERENCE OFFER DATED ____ . YOUR OFFER ON SOLICITATION (BLOCK 5) INCLUDING ANY ADDITIONS OR CHANGES WHICH ARE SET FORTH HEREIN, IS ACCEPTED AS TO ITEMS:
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30a. SIGNATURE OF OFFEROR/CONTRACTOR		31a. UNITED STATES OF AMERICA (SIGNATURE OF CONTRACTING OFFICER)	
30b. NAME AND TITLE OF SIGNER (TYPE OR PRINT)	30c. DATE SIGNED	31b. NAME OF THE CONTRACTING OFFICER (TYPE OR PRINT)	31c. DATE SIGNED

AUTHORIZED FOR LOCAL REPRODUCTION
PREVIOUS EDITION IS NOT USABLE

STANDARD FORM 1449 (REV. 11/2021)
Prescribed by GSA - FAR (48 CFR) 53.212

19. ITEM NUMBER	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE		32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE			32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
			32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE	
33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT ☐ COMPLETE ☐ PARTIAL ☐ FINAL	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL				
38. S/R ACCOUNT NUMBER	39. S/R VOUCHER NUMBER	40. PAID BY		
41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT		42a. RECEIVED BY (<i>Print</i>)		
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER		41c. DATE	42b. RECEIVED AT (<i>Location</i>)	
			42c. DATE REC'D (YY/MM/DD)	42d. TOTAL CONTAINERS

Table of Contents

<u>Section</u>	<u>Description</u>	<u>Page Number</u>
1	Continuation Sheet.....	5
1	Performance Work Statement.....	7
2	Contract Clauses.....	31
	52.252-2 Clauses Incorporated by Reference (Feb 1998).....	31
	Deliveries or Performance.....	31
	52.203-6 Alt I Restrictions on Subcontractor Sales to the Government (Jun 2020) - Alternate I (Nov 2021).....	31
	52.203-17 Contractor Employee Whistleblower Rights (Nov 2023).....	32
	52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017).....	32
	52.204-13 (DEV) System for Award Management - Maintenance (OCT 2018) (DEVIATION NOV 2025).....	32
	52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (Jan 2025).....	32
	52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015).....	32
	52.212-4 (DEV) Contract Terms and Conditions-Commercial Products and Commercial Services (NOV 2023) (DEVIATION AUG 2025).....	32
	52.219-6 (DEV) Notice of Total Small Business Set-Aside (NOV 2020) (DEVIATION NOV 2025).....	32
	52.219-8 (DEV) Utilization of Small Business Concerns (JAN 2025) (DEVIATION NOV 2025).....	32
	52.222-3 (DEV) Convict Labor (JUN 2003) (DEVIATION NOV 2025).....	32
	52.222-35 (DEV) Equal Opportunity for Veterans (JUN 2020) (DEVIATION NOV 2025).....	32
	52.222-36 (DEV) Equal Opportunity for Workers with Disabilities (JUN 2020) (DEVIATION NOV 2025).....	32
	52.222-37 (DEV) Employment Reports on Veterans (JUN 2020) (DEVIATION NOV 2025).....	32
	52.222-40 (DEV) Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (DEVIATION NOV 2025).....	32
	52.222-41 (DEV) Service Contract Labor Standards (AUG 2018) (DEVIATION NOV 2025).....	32
	52.222-43 (DEV) Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (DEVIATION NOV 2025).....	32
	52.222-50 (DEV) Combating Trafficking in Persons (OCT 2025) (DEVIATION NOV 2025).....	32
	52.222-54 (DEV) Employment Eligibility Verification (JAN 2025) (DEVIATION NOV 2025).....	32
	52.222-55 (DEV) Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022) (DEVIATION NOV 2025).....	32
	52.222-62 (DEV) Paid Sick Leave Under Executive Order 13706 (JAN 2022) (DEVIATION NOV 2025).....	33
	52.223-2 (DEV) Reporting of Biobased Products Under Service and Construction Contracts (MAY 2024) (DEVIATION NOV 2025).....	33
	52.223-23 (DEV) Sustainable Products (MAY 2024) (DEVIATION NOV 2025).....	33
	52.225-1 (DEV) Buy American-Supplies (OCT 2022) (DEVIATION NOV 2025).....	33
	52.226-8 Encouraging Contractor Policies To Ban Text Messaging While Driving (May 2024).....	33
	52.229-3 (DEV) Federal, State, and Local Taxes (FEB 2013) (DEVIATION SEP 2025).....	33
	52.232-33 Payment by Electronic Funds Transfer-System for Award Management (Oct 2018).....	33
	52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023).....	33
	52.233-3 (DEV) Protest after Award (AUG 1996) (DEVIATION NOV 2025).....	33
	52.233-4 (DEV) Applicable Law for Breach of Contract Claim (AUG 1996) (DEVIATION NOV 2025).....	33
	52.240-91 Alt I (DEV) Security Prohibitions and Exclusions (NOV 2025) - Alternate I (NOV 2025) (DEVIATION NOV 2025).....	33
	52.244-6 (DEV) Subcontracts for Commercial Products and Commercial Services (OCT 2025) (DEVIATION NOV 2025).....	33
	852.232-72 ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018).....	33
	852.237-75 KEY PERSONNEL (OCT 2019).....	33
	852.242-71 ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020).....	33
	52.217-8 Option to Extend Services (Nov 1999).....	33
	52.217-9 Option to Extend the Term of the Contract (Mar 2000).....	34

	52.222-90 Addressing DEI Discrimination by Federal Contractors.....	34
	52.223-5 Pollution Prevention and Right-to-Know Information (May 2024).....	35
	52.245-1 Government Property (Sep 2021).....	35
	852.201-70 CONTRACTING OFFICER'S REPRESENTATIVE (DEC 2022).....	44
	852.203-70 COMMERCIAL ADVERTISING (MAY 2018).....	44
	852.219-73 VA NOTICE OF TOTAL SET-ASIDE FOR VERIFIED SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESSES (NOV 2022).....	44
	852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING-CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (NOV 2022).....	46
	852.222-71 (DEV) COMPLIANCE WITH EXECUTIVE ORDER 13899 (APR 2025) (DEVIATION APR 2025).....	47
3	Documents, Exhibits, or Attachments.....	48
3	P07 SCA WD 2015-5469 rev30 04292026.pdf.....	49
4	Solicitation Provisions.....	60
	52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998).....	60
	52.203-11 Certification And Disclosure Regarding Payments to Influence Certain Federal Transactions (Sept 2024).....	60
	52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements--Representation (Jan 2017).....	60
	52.204-7 (DEV) System for Award Management - Registration (NOV 2024) (DEVIATION NOV 2025).....	60
	852.233-70 PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION (OCT 2018).....	60
	52.209-7 Information Regarding Responsibility Matters (Oct 2018).....	60
	52.212-1 (DEV) Instructions to Offerors-Commercial Products and Commercial Services (SEP 2023) (DEVIATION AUG 2025).....	61
	52.216-1 (DEV) Type of Contract (APR 1984) (DEVIATION NOV 2025).....	62
	52.217-3 (DEV) Evaluation Exclusive of Options (APR 1984) (DEVIATION NOV 2025).....	62
	52.225-2 Buy American Certificate (Oct 2022).....	62
	52.233-2 (DEV) Service of Protest (SEP 2006) (DEVIATION NOV 2025).....	63
	52.252-5 Authorized Deviations in Provisions (Nov 2020).....	63
	852.233-71 ALTERNATE PROTEST PROCEDURE (OCT 2018).....	63
4	Instructions to Offerors_Evaluations.....	64
F	Deliveries or Performance.....	

Section 1 - Continuation Sheet

Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	Quantity Price Break
0001	See Description Below PSC: S206 GUARD SERVICES	12.000000	MO			
	Description: 24/7 Unarmed Security Guard services with vehicle patrol					
	Period of Performance: 09/15/2026 - 09/14/2027					
	Reference Line: F369403-26-2000005 - 0001					
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	Quantity Price Break
10001	See Description Below PSC: S206 GUARD SERVICES	12.000000	MO			
	Description: 24/7 Unarmed Security Guard services with vehicle patrol					
	Period of Performance: 09/15/2027 - 09/14/2028					
	Reference Line: F369403-26-2000005 - 10001					
	Pricing Options: Option					
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	Quantity Price Break
20001	See Description Below PSC: S206 GUARD SERVICES	12.000000	MO			
	Description: 24/7 Unarmed Security Guard services with vehicle patrol					
	Period of Performance: 09/15/2028 - 09/14/2029					
	Reference Line: F369403-26-2000005 - 20001					
	Pricing Options: Option					
Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	Quantity Price Break
30001	See Description Below PSC: S206 GUARD SERVICES	12.000000	MO			
	Description: 24/7 Unarmed Security Guard services with vehicle patrol					
	Period of Performance: 09/15/2029 - 09/14/2030					
	Reference Line: F369403-26-2000005 - 30001					
	Pricing Options: Option					

Number	Supplies or Services	Qty	Unit	Unit Price	Total (Inc. disc., tax, and fees)	Quantity Price Break
40001	See Description Below PSC: S206 GUARD SERVICES	12.000000	MO			
	Description: 24/7 Unarmed Security Guard services with vehicle patrol					
	Period of Performance: 09/15/2030 - 09/14/2031					
	Reference Line: F369403-26-2000005 - 40001					
	Pricing Options: Option					

PERFORMANCE WORK STATEMENT (PWS)

UNARMED SECURITY GUARD SERVICES

National Memorial Cemetery of Arizona

PART 1

GENERAL INFORMATION

1. **GENERAL:** This is a non-personnel services contract to provide Unarmed Security Guard Services. The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

- 1.1. **DESCRIPTION OF SERVICES:** The contractor shall provide all personnel, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform Unarmed Security Guard Services as defined in this Performance Work Statement except for those items specified as government furnished property and services. The contractor shall perform to the standards in this contract.

- 1.2. **BACKGROUND:** The Department of Veterans Affairs (VA) National Cemetery Administration (NCA) is responsible for the operation and maintenance of national cemeteries across the United States. The primary mission of the NCA is to honor Veterans and their eligible family members with final resting places in national shrines and with lasting tributes that commemorate their services and sacrifice to our Nation.

To support this mission, unarmed security services are required to ensure the safety and security of cemetery property, staff visitors, and assets during designated periods. Security services play a crucial role in maintaining the dignity, respect and solemnity appropriate to a national cemetery environment. These services include site patrols, incident reporting, access control, and deterrence of unauthorized activity.

This contract provides for unarmed security guard services at the National Memorial Cemetery of Arizona, located in Phoenix Arizona, to maintain a safe and secure environment in alignment with federal, state, and local regulations and the NCA's commitment to operational excellence.

- 1.3. **OBJECTIVES:**

- 1.3.1. Provide a secure and respectful environment that upholds the dignity of the national cemetery, ensuring the safety of visitors, employees, and government property at all times.

- 1.3.2. Prevent unauthorized access, vandalism, theft, or disturbances on cemetery grounds through professional, proactive, and visible security presence.
- 1.3.3. Support the uninterrupted conduct of interment services and ceremonial events by maintaining situational awareness, managing access, and ensuring a peaceful setting.
- 1.3.4. Respond appropriately and efficiently to security incidents, emergencies, and suspicious activity, in coordination with cemetery personnel and local law enforcement as needed.
- 1.3.5. Ensure continuous monitoring and safeguarding of critical infrastructure and assets, including administrative buildings, maintenance facilities, committal shelters, flagpole area, and memorial areas.
- 1.3.6. Promote public confidence and trust by providing courteous, professional assistance to visitors while maintaining a discreet and solemn demeanor appropriate to a national shrine.
- 1.3.7. Comply with all applicable federal, state, and local laws, as well as Department of Veterans Affairs (VA) and NCA-specific regulations and post orders.
- 1.3.8. Deliver all security services in a manner consistent with the mission and values of the National Cemetery administration: "No Veteran Ever Dies".

1.4. **SCOPE:** Unarmed Security Guard Services. The purpose of this contract is to provide Unarmed Security Guard Services at the National Memorial Cemetery of Arizona, in support of the National Cemetery Administration (NCA), U.S. Department of Veterans Affairs. The contractor shall furnish all labor, supervision, equipment, uniforms, supplies, and transportation necessary to perform professional Unarmed Security Guard Services to protect government property, cemetery grounds, employees, and the visiting public.

- 1.4.1. Security services shall be performed in a manner that reflects the dignity, solemnity, and reverence of the national cemetery, honoring the service and sacrifice of interred veterans and their families. All security activities shall be conducted with the utmost respect and discretion in accordance with federal regulations, local laws, and VA/NCA policies.
- 1.4.2. The contractor shall ensure continuous surveillance and patrol of designated areas, control access points, prevent unauthorized activity, respond to security incidents, and support special events such as military funeral honors and ceremonial events. All duties shall be performed by qualified, trained, and licensed personnel in accordance with the requirements set forth in this PWS.
- 1.4.3. The scope includes routine patrols, monitoring of facilities, incident response, emergency support, visitor assistance, and the maintenance of security logs and incident reports as directed by the Contracting Officer's Representative (COR). Services shall be provided 24 continuous hours a day, during scheduled and unscheduled federal holidays and weekends.

- 1.5. **PERIOD OF PERFORMANCE:** The period of performance shall be for one (1) Base Year of 12 months and two (4) 12-month option years. The Period of Performance reads as follows:

Base Year: MM/DD/YYYY - MM/DD/YYYY

Option Year I: MM/DD/YYYY - MM/DD/ YYYY

Option Year II: MM/DD/YYYY- MM/DD/ YYYY

Option Year III: MM/DD/YYYY - MM/DD/ YYYY

Option Year IV: MM/DD/YYYY - MM/DD/ YYYY

1.6. **QUALITY CONTROL AND ASSURANCE**

- 1.6.1. **QUALITY CONTROL:** The contractor shall develop and maintain an effective quality control program to ensure services are performed in accordance with this PWS. The contractor shall develop and implement procedures to identify, prevent, and ensure non-recurrence of defective services. The contractor's quality control program is the means by which he assures himself that his work complies with the requirement of the contract. After acceptance of the quality control plan the contractor shall receive the contracting officer's acceptance in writing of any proposed change to his QC system. Contractor shall submit quality control plan 10 days post award date to contracting officer and contracting officer representative.

- 1.6.2. **QUALITY ASSURANCE:** The government shall evaluate the contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan. This plan is primarily focused on what the Government must do to ensure that the contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.7. **RECOGNIZED HOLIDAYS:**

January	New Year's Day
January	Martin Luther King Jr.'s Birthday
February	Washington's Birthday
May	Memorial Day
June	Juneteenth
July	Independence Day
September	Labor Day
October	Columbus Day
November	Veterans Day
November	Thanksgiving Day

December Christmas

When a holiday falls on Sunday, the following Monday will be observed as a Federal Holiday. When a holiday falls on a Saturday, the preceding Friday will be observed as a Federal Holiday by U.S. Government Agencies. Also included would be any day specifically declared by the President of the United States of America as a Federal Holiday.

- 1.8. **HOURS OF OPERATION:** The contractor is responsible for conducting business, 24 hours per day. The Contractor shall maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.
- 1.9. **PLACE OF PERFORMANCE:** The work to be performed under this contract will be performed at the National Memorial Cemetery of Arizona. 2929 E Pinnacle Peak Road, Phoenix Arizona 85024.
- 1.10. **TYPE OF CONTRACT:** The government will award a definitive quantity firm-fixed price contract.
- 1.11. **INTERFERENCE WITH GOVERNMENT OPERATIONS:** Performance of work by the Contractor personnel under the terms of this contract shall not interfere with regularly scheduled Government operational activities.
- 1.12. **SECURITY REQUIREMENTS:** The Contractor shall perform security services in accordance with applicable Federal, State, and local laws, and in alignment with relevant portions of VA Directive 0730, Security and Law Enforcement, specifically those sections addressing physical security, access control, incident reporting, and emergency preparedness. This reference does not authorize contract security personnel to carry firearms, exercise law enforcement authority, or perform police functions. Armed security response and law enforcement remain the responsibility of VA Police and/or local law enforcement agencies. The Contractor shall maintain a current list of all individuals working onsite. The Contractor shall maintain a list of all vehicles onsite, whether company-owned or employee-owned private vehicles.
- 1.13. **PHYSICAL SECURITY:** The contractor shall be responsible for safeguarding all government equipment, information and property provided for contractor use. At the

close of each work period, government facilities, equipment, and materials shall be secured.

- 1.14. **CEMETERY ACCESS:** The Contractor shall be responsible for ensuring that all personnel authorized to perform work under this contract obtain cemetery access. Within ten (10) workdays after contract award, the Contractor shall submit to the Contracting Officer and COR the names of ALL personnel working under this contract. Changes of the Contractor personnel list shall be submitted within 24 hours of the change taking place. All Contractor employees shall have on them, at all times, positive, photographic identification.
- 1.15. **KEY CONTROL AND REPORTING:** The Contractor shall establish and implement methods of making sure all keys issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. No keys issued to the Contractor by the Government shall be duplicated. The Contractor shall develop procedures covering key control that shall be included in the Quality Control Plan. Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The Contractor shall immediately report any occurrences of lost or duplicate keys to the Contracting Officer.
 - 1.15.1. In the event keys, other than master keys, are lost or duplicated, the Contractor shall, upon direction of the Contracting Officer, re-key or replace the affected lock or locks; however, the Government, at its option, may replace the affected lock or locks or perform re-keying. When the replacement of locks or re-keying is performed by the Government, the total cost of re-keying or the replacement of the lock or locks shall be deducted from the monthly payment due the Contractor. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the Government and the total cost deducted from the monthly payment due the Contractor.
 - 1.15.2. The Contractor shall prohibit the use of Government issued keys by any persons other than the Contractor's employees. The Contractor shall prohibit the opening of locked areas by Contractor employees to permit entrance of persons other than Contractor employees engaged in the performance of assigned work in those areas, or personnel authorized entrance by the Contracting Officer.
- 1.16. **SPECIAL QUALIFICATIONS:** The Contractor shall ensure that all personnel assigned to the National Memorial Cemetery of Arizona possess and maintain the required special qualifications. The contractor shall provide verified documentation prior to assignment failure to do so may result in the removal of personnel from the worksite

at no additional cost to the Government and may be grounds for non-acceptance of work or other contractual remedies as deemed necessary by the Contracting Officer. Signed statements for personnel special qualifications statements shall be provided to the Contracting Officer 5 business days prior to duty assignment of employees to the National Memorial Cemetery of Arizona.

- 1.16.1. State Security Guard License or certification – Guards must hold a valid state-issued Unarmed Security Guard License, where applicable. Name on security guard license must match state issued driver's license.
- 1.16.2. Background Checks/Suitability Screening – Must pass a criminal background check
- 1.16.3. U.S. Citizenship or Legal Authorization to Work- All personnel must be U.S. citizens or legally authorized to work under federal contracting rules
- 1.16.4. Minimum Age Requirement- Guards must be at least 21 years old
- 1.16.5. Valid Driver's License
- 1.16.6. Post Orders and Incident Reporting Knowledge – Familiarity with maintaining daily activity logs, incident reports, and following post orders.

1.17. **POST AWARD CONFERENCE/PERIODIC PROGRESS MEETINGS:** The Contractor agrees to attend any post award conference convened by the contracting activity or contract administration office in accordance with Federal Acquisition Regulation Subpart 42.5. The contracting officer, Contracting Officers Representative (COR), and other Government personnel, as appropriate, may meet periodically with the contractor to review the contractor's performance. At these meetings the contracting officer will apprise the contractor of how the government views the contractor's performance and the contractor will apprise the Government of problems, if any, being experienced. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the government.

1.18. **CONTRACTING OFFICER REPRESENTATIVE (COR):** The (COR) will be identified by separate letter. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract; perform inspections necessary in connection with contract performance; maintain written and oral communications with the Contractor concerning technical aspects of the contract; issue written interpretations of technical requirements, including Government drawings, designs, specifications; monitor Contractor's performance and notifies both the Contracting Officer and Contractor of any deficiencies; coordinate availability of government furnished property, and provide site entry of Contractor personnel. A letter of designation issued to the COR, a copy of which is sent to the Contractor, states the responsibilities and limitations of the COR, especially with regard to changes in cost or

price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order.

- 1.19. **KEY PERSONNEL:** The following personnel are considered key personnel by the government: Program Manager and Onsite Supervisor. The Program Manager shall have full authority to act for the Contractor on all contract matters relating to the daily operation of this contract. Prior to assuming the responsibility of a post, the Contractor's Program Manager shall ensure that the Guards are briefed and trained in the requirements of their post. The Onsite Supervisor shall be responsible for the daily operation and oversight of all activities.

- 1.19.1. **PROGRAM MANAGER:** The program manager or alternate shall be available between 8:00 a.m. to 4:30p.m., Monday thru Friday except Federal holidays. Qualifications for all key personnel are listed below:

- 1.19.2. **ON-SITE SUPERVISOR:** The On-Site Supervisor shall have a minimum of four (2) years of supervision of physical security and patrol guard services supervising a minimum of five (5) guards at one time. The On-Site Supervisor shall have a current security guard license during the performance of the contract. The Contractor shall maintain a copy of the license of each Guard that performs services on this contract to demonstrate compliance with required qualification of the Guards under this contract and shall be presented upon request.

- 1.20. **IDENTIFICATION OF CONTRACTOR EMPLOYEES:** All Contractor personnel shall clearly identify themselves as contractor employees at all times while performing services under this contract. Contractor personnel shall not represent themselves as Government employees. All reports, correspondence, or other deliverables produced under this contract shall be marked as contractor products, as applicable. Contractor personnel shall be required to obtain and visibly wear a Government-issued identification badge while on duty at the National Memorial Cemetery of Arizona. In addition, the Contractor shall ensure security personnel wear a clearly identifiable uniform that distinguishes them from Government employees. Badges shall be displayed above the waist and visible at all times while performing official duties.

- 1.21. **PHASE IN /PHASE OUT PERIOD :** To minimize any decreases in productivity and to prevent possible negative impacts on additional services, the Contractor shall have personnel on board, during the (30) calendar days phase in/ phase out periods. During the phase in period, the Contractor shall become familiar with performance

requirements in order to commence full performance of services on the contract start date.

PART 2

DEFINITIONS & ACRONYMS

2. DEFINITIONS AND ACRONYMS:

2.1. DEFINITIONS:

2.1.1. **CONTRACTOR:** A supplier or vendor awarded a contract to provide specific supplies or service to the government. The term used in this contract refers to the prime.

2.1.2. **CONTRACTING OFFICER:** A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the government. Note: The only individual who can legally bind the government.

2.1.3. **CONTRACTING OFFICER'S REPRESENTATIVE (COR):** An employee of the U.S. Government appointed by the contracting officer to administer the contract. Such appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does NOT have authority to change the terms and conditions of the contract.

2.1.4. **DEFECTIVE SERVICE:** A service output that does not meet the standard of performance associated with the Performance Work Statement.

2.1.5. **DELIVERABLE:** Anything that can be physically delivered but may include non-manufactured things such as meeting minutes or reports.

2.1.6. **KEY PERSONNEL:** Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract by the Key Personnel listed in the PWS. When key personnel are used as an evaluation factor in best value procurement, an offer can be rejected if it does not have a firm commitment from the persons that are listed in the proposal.

2.1.7. **PHYSICAL SECURITY:** Actions that prevent the loss or damage of Government property.

2.1.8. **QUALITY ASSURANCE:** The government procedures to verify that services being performed by the Contractor are performed according to acceptable standards.

2.1.9. **QUALITY ASSURANCE:** Surveillance Plan (QASP). An organized written document specifying the surveillance methodology to be used for surveillance of contractor performance.

2.1.10. **QUALITY CONTROL:** All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.11. **SUBCONTRACTOR:** One that enters into a contract with a prime contractor. The Government does not have privity of contract with the subcontractor.

2.1.12. **WORK DAY:** The number of hours per day the Contractor provides services in accordance with the contract.

2.1.12. **WORK WEEK:** Monday through Friday, unless specified otherwise.

2.2. ACRONYMS:

CFR	Code of Federal Regulations
COR	Contracting Officer Representative
FAR	Federal Acquisition Regulation
CO	Contracting Officer
PIPO	Phase In/Phase Out
POC	Point of Contact
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
TE	Technical Exhibit

PART 3

GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. **GOVERNMENT FURNISHED ITEMS AND SERVICES:**

- 3.1 **Facilities :** The Government will not provide dedicated office space or workspace to the Contractor under this contract. The Contractor shall be responsible for providing all necessary workspace accommodations for performance of duties. The Contractor's on-duty security guard shall utilize the Contractor-provided patrol vehicle as the primary workspace for report writing, monitoring duties, and administrative functions associated with contract performance. The Contractor shall ensure the patrol vehicle is properly maintained, insured, and equipped to support continuous 24/7 operations.
- 3.2 **Utilities:** The Government will provide access to facility utilities (electricity, lighting, climate control, and restroom facilities) necessary for the performance of duties under this contract. The Contractor shall ensure personnel practice utilities conservation and operate under conditions that prevent waste.
- 3.3 **Equipment :** The Government will provide two (2) two-way radio for official security communications and monitoring of cemetery transmissions for security support purposes.
 The Contractor's on-duty security guard shall:
 Check out the radio daily at 8:00 a.m. when the Administration Office opens.
 Maintain control and accountability of the radio during the duty day.
 Return the radio to the Administration Office no later than 4:30 p.m. prior to office closure.
 The Contractor shall be responsible for safeguarding the radio while in use and immediately reporting any loss, damage, or malfunction to the COR.
 All other equipment necessary for performance of this contract, including uniforms and any contractor-provided communication devices outside of the Government-issued radio, shall be furnished by the Contractor.
- 3.4 **Materials:** The Government will provide the daily interment schedule each morning at the time the radio is issued. The schedule shall be used by the Contractor's security guard to assist visitors with directions and information related to services scheduled for that day.
 The Government will also provide applicable cemetery policies, post orders, and Standard Operating Procedures (SOPs) necessary for contract performance.

PART 4

CONTRACTOR FURNISHED ITEMS AND SERVICES

4. **CONTRACTOR FURNISHED ITEMS AND RESPONSIBILITIES:**

4.1 **General:** The Contractor shall furnish all supplies, equipment, facilities and services required to perform work under this contract that are not listed under Section 3 of this PWS.

4.2 **Uniform and Personal Appearance:** The Contractor shall furnish all guards with the appropriate standardized uniforms that:

4.2.1 Clearly identify the individual as a security officer

4.2.2 Are clean, professional and appropriate for weather conditions

4.3. **Materials :** The Contractor shall furnish marked or unmarked vehicles (as required) suitable for patrolling cemetery grounds if the post requires mobile patrol. Vehicles must be state-registered, insured, clean, well-maintained, and compliant with local, state and federal regulations.

PART 5 SPECIFIC TASKS

5. **CLIN 0001: Unarmed Security Guard Services**

5.1. The contractor shall provide guard coverage to the following tasks

5.2. **Perimeter and Grounds Patrol:** The contractor shall conduct routine and random patrols of the cemetery perimeter, interior roadways, columbaria, maintenance areas, and facilities during assigned duty hours. Patrols shall deter trespassing, vandalism, theft, and any unauthorized or suspicious activity. Patrol frequency shall be recorded in a daily activity log.

5.3. **Incident Response:** The contractor shall respond immediately to any security-related incidents, including but not limited to disturbances, medical emergencies, property damage or suspicious behavior. The guard shall notify appropriate authorities (Veterans Affairs Police, local police emergency or non-emergency line, fire department or emergency medical) and the COR as required, and document all actions taken in an incident report. Incident report shall be submitted to COR no later than 2 hours post incident.

5.4. **Funeral and Ceremony Support:** The contractor shall provide security presence during large funeral services, ceremonies (Memorial Day, Veterans Day and Wreath Across America) ensuring a peaceful and undisturbed environment. The guard shall assist with traffic control or pedestrian management as needed during large funeral services and ceremonies.

5.5. **Property Surveillance:** The contractor shall monitor administrative buildings, maintenance facilities, flagpoles, monuments, columbarium walls, public restrooms and

equipment storage areas to ensure government property is not tampered with, stolen, or damaged. Any suspicious activity shall be reported immediately.

5.6. Professional Appearance and Conduct: All guards shall present a professional image consistent with the solemn mission of the National Memorial Cemetery of Arizona. Uniforms shall be clean, complete, and worn properly. Guards shall remain courteous, respectful, and non-disruptive while interacting with the public, veterans' families and cemetery staff.

5.7. Compliance with Post Orders: The contractor shall ensure all assigned unarmed security personnel comply with current Post Orders provided by the National Memorial Cemetery of Arizona Director or the Contracting Officer's Representative (COR). These post orders outline site-specific duties, patrol schedules, emergency response protocols, access control procedures, and conduct expectations.

The contractor shall:

Ensure guards are trained and familiar with all applicable post orders before beginning any post assignment.

Maintain a record of training acknowledgments signed by each guard.

Implement updates to post orders within 24 hours of notification by the COR.

Ensure post orders are always accessible.

Failure to comply with post orders may result in corrective action or contract termination under the terms of this agreement.

PART 6

APPLICABLE PUBLICATIONS

6. APPLICABLE PUBLICATIONS (CURRENT EDITIONS)

6.1. The Contractor must abide by all applicable regulations, publications, manuals, and local policies and procedures

6.2 VA Directive 0730 - Security and Law Enforcement

Physical Security Requirements- (appendix B in VA Handbook 0730, which implements VA Directive 0730) covers building access control, barriers, alarm systems, and securing high-value assets-an appropriate baseline for security protocols.

Incident Reporting Policies- Directive 0730 emphasizes mandatory reporting of criminal acts and security incidents within VA facilities.

Policy Intent- The directive states its purpose is to protect lives and property within VA's jurisdiction.

6.3 NCA Directive 0320 – Emergency Preparedness Program: Establishes requirements for preparedness and response to emergencies (natural disasters, manmade events, security threats)

6.4 NCA Directive 3000 – Operational Standards and Measures for VA National Cemeteries: Provides baseline performance standards for all National Cemeteries to ensure consistency and dignity.

6.5 NCA Directive 3012 – Uniforms and PPE for National Cemetery Employee: Defines standards for uniforms and personal protective equipment for NCA Staff.

PART 7

ATTACHMENT/TECHNICAL EXHIBIT LISTING

7. Attachments:

- 7.1. Attachment 1/Technical Exhibit 1 – Quality Assurance Surveillance Plan
- 7.2. Attachment 2/Technical Exhibit 2 – Deliverables Schedule
- 7.3. Attachment 3/Technical Exhibit 3 – Estimated Workload Data
- 7.4. Attachment 4/Technical Exhibit 4 – Cemetery Site Map
- 7.5. Attachment 5/ Technical Exhibit 5 – Post Order Template
- 7.6. Attachment 6/Technical Exhibit 6 – Incident Report
- 7.7. Attachment 7/Technical Exhibit 7 – Daily Activity Log
- 7.8. Attachment 8/ Technical Exhibit 8 – Equipment Inventory List

Attachment 1/ Technical Exhibit 1

Quality Assurance Surveillance Plan (QASP)

Performance Objective	Standard	Performance Threshold	Method of Surveillance	Impact on CPARS
The contractor shall conduct routine and random patrols.	PWS 5.2 Perimeter and Grounds Patrol	≥100%	Random Sampling by COR	Negative impact on CPARS if Performance Objective falls below Performance Threshold
The contractor shall respond immediately to any security related incidents	PWS 5.3 Incident Response	≥97%	Random Sampling by COR	Negative impact on CPARS if Performance Objective falls below Performance Threshold
The contractor shall provide a security presence during large funeral services	PWS 5.4 Funeral and Ceremony Support	99%	Random Sampling by COR	Negative impact on CPARS if Performance Objective falls below Performance Threshold
The contractor shall monitor buildings	PWS 5.5 Property Surveillance	97%	Random Sampling by COR	Negative impact on CPARS if Performance Objective falls below Performance Threshold
All guards shall present a professional image	PWS 5.6 Personnel appearance and conduct	97%	Random Sampling by COR	Negative impact on CPARS if Performance Objective falls below Performance Threshold
The contractor shall ensure all personnel comply with current Post Orders	PWS 5.7 Compliance with Post Orders	95%	Random Sampling by COR	Negative impact on CPARS if Performance Objective falls below Performance Threshold

Attachment 2/Technical Exhibit 2

Deliverables Schedule

<u>Deliverable</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit To</u>
PWS 1.6.1 Quality Control Plan	10 days post award	2	Email	CO/COR
PWS 1.16 Special Qualifications Statement	5 business days prior to assignment to cemetery	2	Email	CO/COR
PWS 1.14 Contractor personnel list	10 days post award	2	Email	CO/COR
PWS 5.2 Daily Activity Log	Daily entries	1	Email	COR
PWS 5.3 Incident Report	2 hours Post Incident	1	Email	COR

Attachment 3/Technical Exhibit 3

Estimated Workload Data

1. General Information

Category	Description
Total Cemetery Acreage	225 Acres
Burial Sections	91 Sections
Daily Visitor Average	150
Special Events Per Year	5
Operating Hours	08:00am - 16:30pm MON-FRI
Security Coverage Required	7 days/ 24 hours

2. Post Assignment

Post Location	Frequency	Duration	Tasks
Main Gate	Daily	8 hours a day	Monitor visitor access

Patrol Route (foot/vehicle)	3x per shift	45 min each	Rove for incidents, check buildings and perimeter
Public Information Center	As needed	Variable	Assist Visitors
Special Events	As Scheduled	4-8 hours	Crowd control, traffic direction

3. Incident and Activity Estimates (Annual)

Activity	Estimated Frequency
Visitor Assistance	5 / Hour
Lost & Found Reports	1 / Week
Property Damage Reports	1 / Month
Trespass Incidents	2 / Annual
Medical/First Aid Assets	-
Emergency Response Coordination	2 – Month

4. Equipment and Supplies (Contractor Furnished)

Item	Quantity	Frequency
Uniformed Guards	1	Per Shift
Patrol Vehicle	1	Daily
Flashlights, reflective vest	1	As Needed
Daily Activity Logs	1	Daily

5. Seasonal Considerations

Season	Consideration
Spring/Summer	High visitor volume, increased patrols during events
Fall/Winter	Shorter daylight hours, potential for weather-related hazards, PPE

MARCH 2025

Attachment 5/Technical Exhibit 5

Post Order Template

Post Orders- 914 National Cemetery Unarmed Security Services

Cemetery Name: National Memorial Cemetery of Arizona

Location: 2929 E. Pinnacle Peak Road, Phoenix AZ 85024

Shift Times:

Reporting Location: Admin building

Prepared By:

Approved By:

1. **Purpose:** To provide clear, consistent instructions for unarmed security personnel assigned to guard duty at the National Memorial Cemetery of Arizona, ensuring the protection of government property, personnel, and the public, while upholding the solemn dignity of the cemetery grounds.
2. **General Responsibilities:**
 - Maintain a visible, professional presence on-site during assigned shifts
 - Protect cemetery property and facilities from vandalism, theft, trespassing, and other unauthorized activities
 - Monitor entrances, exits, and perimeter during open and closed hours
 - Greet and assist cemetery visitors respectfully and tactfully
 - Enforce cemetery rules and regulations without confrontation
 - Promptly report all incidents, suspicious activity, or hazards to the Contracting Officer Representative (COR) and local authorities if necessary
 - Complete all required logs and reports during and at the end of each shift
3. **Daily Duties:**
 - Sign in with the COR or designated representative at the beginning of each shift
 - Conduct initial perimeter and facilities check
 - Log all notable observations, visitor interactions, and incidents
 - Monitor security cameras or other systems if applicable
 - Lock/unlock gates and facilities at designated times
 - Conduct roving foot and/or vehicle patrols at regular intervals
 - Assist with crowd control during ceremonies or special events as requested
 - Notify appropriate personnel of maintenance or safety hazards
4. **Communication Protocols:**
 - Maintain constant communication via two-way radio or designated device
 - Report emergencies immediately via 911, then notify the COR

- Use clear, professional radio communication at all times
- Maintain a daily activity log and submit shift reports to the COR

5. Emergency Procedures:

- Be familiar with site-specific emergency plans (e.g. fire, medical, severe weather)
- Provide basic assistance during emergencies until first responders arrive
- Secure the area as necessary and direct emergency personnel upon arrival
- Report all incidents involving injury, damage, or criminal activity immediately

6. Uniform and Appearance

- Wear a clean, approved uniform at all times while on duty
- Display company identification badge and any required government credentials
- Maintain a professional and respectful appearance at all times

7. Prohibited Conduct

- No sleeping or inattentiveness while on duty
- No use of personal electronic devices unless authorized
- No consumption of food, beverages, or tobacco products in public view
- No weapons or unauthorized equipment

8. Special Instructions

(Insert any site-specific instructions, such as monitoring certain areas more frequently, scheduled ceremonies, or access restrictions)

Acknowledgment

Security Officer Name:

Signature _____ Date

Supervisor Name

Signature _____ Date

Attachment 6/Technical Exhibit 6**Incident Report Template****Incident Report#** _____**914 National Cemetery Security Services****Date of Report:****Time of Report:****Name of Reporting Officer:****Post/Location:****1. Date and Time of Incident:** _____**2. Location of Incident:** _____**3. Type of Incident (Check all that apply):**

- ☐ Disturbance of Visitors
- ☐ Property Damage/Vandalism
- ☐ Unauthorized Entry
- ☐ Medical Emergency
- ☐ Suspicious Activity
- ☐ Theft
- ☐ Other: _____

4. Description of the Incident:

(Provide a clear and detailed narrative, including sequence of events, individuals involved, and any actions taken.)

5. Names of Individuals involved (if known): _____**6. Witnesses (if any):** _____**7. Actions Taken by Security Personnel:** _____**8. Notifications Made (Check all that apply)**

- ☐ Contracting Officer's Representative (COR)
- ☐ Cemetery Director

- ☐ Local Law Enforcement
- ☐ Emergency Medical Services
- ☐ Other:

9. Follow-up Actions Required:

10. Signature of Reporting Officer: _____

Date: _____

11. Reviewed by (Supervisor/Manager): _____

Date: _____

Attachment 7/Technical Exhibit 7
Daily Log Template

National Cemetery Security Services

Daily Security Log

Date: _____

Shift Start Time: _____

Shift End Time: _____

Reporting Officer: _____

Supervisor: _____

1. Shift Activities:

(Summarize routine security patrols, post checks, and visitor interactions. Note times of patrols and any observations.)

2. Notable Observations:

(Unusual conditions, hazards, or maintenance issues observed during shift.)

3. Visitor or Public Interactions:

(Document significant interactions requiring reporting, including assistance rendered.)

4. Incident Reports Filed:

- ☐ Yes- Incident Report # _____
- ☐ No

5. Equipment Check (mark all that apply):

- ☐ Radios
- ☐ Keys
- ☐ Flashlights

- ☐ Vehicles/Golf Carts
- ☐ Other: _____

6. Notifications Made During Shift:

COR

Cemetery Director

Maintenance Staff

Law Enforcement

Other: _____

7. End-of-Shift Notes/Pass Down

(Provide key information for the next shift Regarding ongoing issues or follow-up required.)

Attachment 8/ Technical Exhibit 8

Equipment Inventory List

Equipment Inventory List											
Site Name	Purchase Date	EIL Num	Equipment Code	Equipment	Equipment Description	Equipment	Manufacturer	Purchase Price	Equipment	Serial Num	Years Life
Nat Memorial Cem of Arizona 914	12/5/2021	EE92676	Motorola XRP3300 2-Way radio	Radio 2-Way	Motorola XRP3300 2-Way radio with charging docking station	Good	Motorola	799.00	In service	446TRK3913	10
Nat Memorial Cem of Arizona 914	12/5/2021	EE92701	Motorola XRP3300 2-Way radio	Radio 2-Way	Motorola XRP3300 2-Way radio with charging docking station	Good	Motorola	799.00	In service	446TRK3603	10

Section 2 - Contract Clauses**52.252-2 Clauses Incorporated by Reference (Feb 1998)**

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/ these address(es):

www.acquisition.gov/browse/index/far (FAR)

www.va.gov/oal/library/vaar/index.asp (VAAR)

[Insert one or more Internet addresses]

(End of clause)

Deliveries or Performance

Line Number/ Delivery Number	Delivery	Quantity	FOB Point	Address
0001/1		12.000000		NATL MEMORIAL CEMETERY OF ARIZONA (914) DEPT OF VETERANS AFFAIRS (914) NATL MEMORIAL CEMETERY OF ARIZONA 23029 CAVE CREEK ROAD PHOENIX, AZ 85024
Line Number/ Delivery Number	Delivery	Quantity	FOB Point	Address
10001/1		12.000000		NATL MEMORIAL CEMETERY OF ARIZONA (914) DEPT OF VETERANS AFFAIRS (914) NATL MEMORIAL CEMETERY OF ARIZONA 23029 CAVE CREEK ROAD PHOENIX, AZ 85024
Line Number/ Delivery Number	Delivery	Quantity	FOB Point	Address
20001/1		12.000000		NATL MEMORIAL CEMETERY OF ARIZONA (914) DEPT OF VETERANS AFFAIRS (914) NATL MEMORIAL CEMETERY OF ARIZONA 23029 CAVE CREEK ROAD PHOENIX, AZ 85024
Line Number/ Delivery Number	Delivery	Quantity	FOB Point	Address
30001/1		12.000000		NATL MEMORIAL CEMETERY OF ARIZONA (914) DEPT OF VETERANS AFFAIRS (914) NATL MEMORIAL CEMETERY OF ARIZONA 23029 CAVE CREEK ROAD PHOENIX, AZ 85024
Line Number/ Delivery Number	Delivery	Quantity	FOB Point	Address
40001/1		12.000000		NATL MEMORIAL CEMETERY OF ARIZONA (914) DEPT OF VETERANS AFFAIRS (914) NATL MEMORIAL CEMETERY OF ARIZONA 23029 CAVE CREEK ROAD PHOENIX, AZ 85024

PERIOD OF PERFORMANCE

ITEM	START	END
0001	09/15/2026	09/14/2027
10001	09/15/2027	09/14/2028
20001	09/15/2028	09/14/2029
30001	09/15/2029	09/14/2030
40001	09/15/2030	09/14/2031

Clause	Title	Fill-ins
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Clause	Title	Fill-ins
52.203-6 Alt I	Restrictions on Subcontractor Sales to the Government (Jun 2020) - Alternate I (Nov 2021)	
52.203-17	Contractor Employee Whistleblower Rights (Nov 2023)	
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)	
52.204-13 (DEV)	System for Award Management - Maintenance (OCT 2018) (DEVIATION NOV 2025)	
52.209-6	Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded (Jan 2025)	
52.209-10	Prohibition on Contracting with Inverted Domestic Corporations (Nov 2015)	
52.212-4 (DEV)	Contract Terms and Conditions-Commercial Products and Commercial Services (NOV 2023) (DEVIATION AUG 2025)	
52.219-6 (DEV)	Notice of Total Small Business Set-Aside (NOV 2020) (DEVIATION NOV 2025)	
52.219-8 (DEV)	Utilization of Small Business Concerns (JAN 2025) (DEVIATION NOV 2025)	
52.222-3 (DEV)	Convict Labor (JUN 2003) (DEVIATION NOV 2025)	
52.222-35 (DEV)	Equal Opportunity for Veterans (JUN 2020) (DEVIATION NOV 2025)	
52.222-36 (DEV)	Equal Opportunity for Workers with Disabilities (JUN 2020) (DEVIATION NOV 2025)	
52.222-37 (DEV)	Employment Reports on Veterans (JUN 2020) (DEVIATION NOV 2025)	
52.222-40 (DEV)	Notification of Employee Rights Under the National Labor Relations Act (DEC 2010) (DEVIATION NOV 2025)	
52.222-41 (DEV)	Service Contract Labor Standards (AUG 2018) (DEVIATION NOV 2025)	
52.222-43 (DEV)	Fair Labor Standards Act and Service Contract Labor Standards-Price Adjustment (Multiple Year and Option Contracts) (AUG 2018) (DEVIATION NOV 2025)	
52.222-50 (DEV)	Combating Trafficking in Persons (OCT 2025) (DEVIATION NOV 2025)	
52.222-54 (DEV)	Employment Eligibility Verification (JAN 2025) (DEVIATION NOV 2025)	

Clause	Title	Fill-ins
52.222-55 (DEV)	Minimum Wages for Contractor Workers Under Executive Order 14026 (Jan 2022) (DEVIATION NOV 2025)	
52.222-62 (DEV)	Paid Sick Leave Under Executive Order 13706 (JAN 2022) (DEVIATION NOV 2025)	
52.223-2 (DEV)	Reporting of Biobased Products Under Service and Construction Contracts (MAY 2024) (DEVIATION NOV 2025)	
52.223-23 (DEV)	Sustainable Products (MAY 2024) (DEVIATION NOV 2025)	
52.225-1 (DEV)	Buy American-Supplies (OCT 2022) (DEVIATION NOV 2025)	
52.226-8	Encouraging Contractor Policies To Ban Text Messaging While Driving (May 2024)	
52.229-3 (DEV)	Federal, State, and Local Taxes (FEB 2013) (DEVIATION SEP 2025)	
52.232-33	Payment by Electronic Funds Transfer-System for Award Management (Oct 2018)	
52.232-40	Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)	
52.233-3 (DEV)	Protest after Award (AUG 1996) (DEVIATION NOV 2025)	
52.233-4 (DEV)	Applicable Law for Breach of Contract Claim (AUG 1996) (DEVIATION NOV 2025)	
52.240-91 Alt I (DEV)	Security Prohibitions and Exclusions (NOV 2025) - Alternate I (NOV 2025) (DEVIATION NOV 2025)	
52.244-6 (DEV)	Subcontracts for Commercial Products and Commercial Services (OCT 2025) (DEVIATION NOV 2025)	
852.232-72	ELECTRONIC SUBMISSION OF PAYMENT REQUESTS (NOV 2018)	
852.237-75	KEY PERSONNEL (OCT 2019)	
852.242-71	ADMINISTRATIVE CONTRACTING OFFICER (OCT 2020)	

52.217-8 Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within 10 *[insert the period of time within which the Contracting Officer may exercise the option]*.

(End of clause)

52.217-9 Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 15 [*insert the period of time within which the Contracting Officer may exercise the option*]; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days [*60 days unless a different number of days is inserted*] before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed five years, six months (months)(years).

(End of clause)

52.222-90 Addressing DEI Discrimination by Federal Contractors

As prescribed in 22.2203, insert the following clause:

Addressing DEI Discrimination by Federal Contractors (DEVIATION Apr 2026)

(a) *Definitions.* As used in this clause—

Program participation means membership or participation in, or access or admission to: training, mentoring, or leadership development programs; educational opportunities; clubs; associations; or similar opportunities that are sponsored or established by the contractor or subcontractor.

Racially discriminatory diversity, equity, and inclusion (DEI) activities means disparate treatment based on race or ethnicity in the recruitment, employment (e.g., hiring, promotions), contracting (e.g., vendor agreements), program participation, or allocation or deployment of an entity's resources.

(b) In connection with the performance of work under this contract, the Contractor agrees as follows:

(1) The Contractor will not engage in any racially discriminatory DEI activities;

(2) The Contractor will furnish all information and reports, including providing access to books, records, and accounts, as required by the Contracting Officer, for purposes of ascertaining compliance with this clause;

(3) In the event of the Contractor's or a subcontractor's noncompliance with this clause, this contract may be canceled, terminated, or suspended in whole or in part, and the Contractor or subcontractor may be declared ineligible for further Government contracts;

(4) The Contractor will report any subcontractor's known or reasonably knowable conduct that may violate this clause to the Contracting Officer and take any appropriate remedial actions directed by the Contracting Officer; and

(5) The Contractor will inform the Contracting Officer if a subcontractor sues the Contractor and the suit puts at issue, in any way, the validity of this clause.

(6) The Contractor recognizes that compliance with the requirements of this clause are material to the Government's payment decisions for purposes of 31 U.S.C. 3729(b)(4).

(c) The Contractor must include the substance of this clause, including this paragraph (c), in subcontracts at any tier, including those for commercial products and commercial services, except those where the place of delivery or performance is outside the United States.

(End of clause)

52.223-5 Pollution Prevention and Right-to-Know Information (May 2024)

(a) *Definitions.* As used in this clause--

"Toxic chemical" means a chemical or chemical category listed in 40 CFR 372.65.

(b) Federal facilities are required to comply with the provisions of the Emergency Planning and Community Right-to-Know Act of 1986 (EPCRA) (42 U.S.C. 11001-11050), and the Pollution Prevention Act of 1990 (PPA) (42 U.S.C. 13101-13109).

(c) The Contractor shall provide all information needed by the Federal facility to comply with the following:

(1) The emergency planning reporting requirements of Section 302 of EPCRA.

(2) The emergency notice requirements of Section 304 of EPCRA.

(3) The list of Material Safety Data Sheets, required by Section 311 of EPCRA.

(4) The emergency and hazardous chemical inventory forms of Section 312 of EPCRA.

(5) The toxic chemical release inventory of Section 313 of EPCRA, which includes the reduction and recycling information required by Section 6607 of PPA.

(End of clause)

52.245-1 Government Property (Sep 2021)

(a) *Definitions.* As used in this clause--

"Cannibalize" means to remove parts from Government property for use or for installation on other Government property.

"Contractor-acquired property" means property acquired, fabricated, or otherwise provided by the Contractor for performing a contract, and to which the Government has title.

"Contractor inventory" means--

(1) Any property acquired by and in the possession of a Contractor or subcontractor under a contract for which title is vested in the Government and which exceeds the amounts needed to complete full performance under the entire contract;

(2) Any property that the Government is obligated or has the option to take over under any type of contract, *e.g.*, as a result either of any changes in the specifications or plans thereunder or of the termination of the contract (or subcontract thereunder), before completion of the work, for the convenience or at the option of the Government; and

(3) Government-furnished property that exceeds the amounts needed to complete full performance under the entire contract.

"Contractor's managerial personnel" means the Contractor's directors, officers, managers, superintendents, or equivalent representatives who have supervision or direction of--

(1) All or substantially all of the Contractor's business;

(2) All or substantially all of the Contractor's operation at any one plant or separate location; or

(3) A separate and complete major industrial operation.

(a) "Demilitarization" means rendering a product unusable for, and not restorable to, the purpose for which it was designed or is customarily used.

"Discrepancies incident to shipment" means any differences (*e.g.*, count or condition) between the items documented to have been shipped and items actually received.

"Equipment" means a tangible item that is functionally complete for its intended purpose, durable, nonexpendable, and needed for the performance of a contract. Equipment is not intended for sale, and does not ordinarily lose its identity or become a component part of another article when put into use. Equipment does not include material, real property, special test equipment or special tooling.

"Government-furnished property" means property in the possession of, or directly acquired by, the Government and subsequently furnished to the Contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance, overhaul, or modification. Government-furnished property also includes contractor-acquired property if the contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract.

"Government property" means all property owned or leased by the Government. Government property includes both Government-furnished and Contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software.

"Loss of Government property" means unintended, unforeseen or accidental loss, damage or destruction to Government property that reduces the Government's expected economic benefits of the property. Loss of Government property does not include purposeful destructive testing, obsolescence, normal wear and tear or manufacturing defects. Loss of Government property includes, but is not limited to--

- (1) Items that cannot be found after a reasonable search;
- (2) Theft;
- (3) Damage resulting in unexpected harm to property requiring repair to restore the item to usable condition; or
- (4) Destruction resulting from incidents that render the item useless for its intended purpose or beyond economical repair.

"Material" means property that may be consumed or expended during the performance of a contract, component parts of a higher assembly, or items that lose their individual identity through incorporation into an end item. Material does not include equipment, special tooling, special test equipment or real property.

"Nonseverable" means property that cannot be removed after construction or installation without substantial loss of value or damage to the installed property or to the premises where installed.

"Precious metals" means silver, gold, platinum, palladium, iridium, osmium, rhodium, and ruthenium.

"Production scrap" means unusable material resulting from production, engineering, operations and maintenance, repair, and research and development contract activities. Production scrap may have value when re-melted or reprocessed, *e.g.*, textile and metal clippings, borings, and faulty castings and forgings.

"Property" means all tangible property, both real and personal.

"Property Administrator" means an authorized representative of the Contracting Officer appointed in accordance with agency procedures, responsible for administering the contract requirements and obligations relating to Government property in the possession of a Contractor.

"Property records" means the records created and maintained by the contractor in support of its stewardship responsibilities for the management of Government property.

"Provide" means to furnish, as in Government-furnished property, or to acquire, as in contractor-acquired property.

"Real property" See Federal Management Regulation 102-71.20 (41 CFR 102-71.20).

"Sensitive property" means property potentially dangerous to the public safety or security if stolen, lost, or misplaced, or that shall be subject to exceptional physical security, protection, control, and accountability. Examples include weapons, ammunition, explosives, controlled substances, radioactive materials, hazardous materials or wastes, or precious metals.

"Unit acquisition cost" means--

- (1) For Government-furnished property, the dollar value assigned by the Government and identified in the contract; and
- (2) For contractor-acquired property, the cost derived from the Contractor's records that reflect consistently applied generally accepted accounting principles.

(b) Property management.

- (1) The Contractor shall have a system of internal controls to manage (control, use, preserve, protect, repair, and maintain) Government property in its possession. The system shall be adequate to satisfy the requirements of this clause. In doing so, the Contractor shall initiate and maintain the processes, systems, procedures, records, and methodologies necessary for effective and efficient control of Government property. The Contractor shall disclose any significant changes to its property management system to the Property Administrator prior to implementation of the changes. The Contractor may employ customary commercial practices, voluntary consensus standards, or industry-leading practices and standards that provide effective and efficient Government property management that are necessary and appropriate for the performance of this contract (except where inconsistent with law or regulation).
- (2) The Contractor's responsibility extends from the initial acquisition and receipt of property, through stewardship, custody, and use until formally relieved of responsibility by authorized means, including delivery, consumption, expending, sale (as surplus property), or other disposition, or via a completed investigation, evaluation, and final determination for lost property. This requirement applies to all Government property under the Contractor's accountability, stewardship, possession or control, including its vendors or subcontractors (see paragraph (f)(1)(v) of this clause).
- (3) The Contractor shall include the requirements of this clause in all subcontracts under which Government property is acquired or furnished for subcontract performance.
- (4) The Contractor shall establish and maintain procedures necessary to assess its property management system effectiveness and shall perform periodic internal reviews, surveillances, self assessments, or audits. Significant findings or results of such reviews and audits pertaining to Government property shall be made available to the Property Administrator.

(c) Use of Government property.

- (1) The Contractor shall use Government property, either furnished or acquired under this contract, only for performing this contract, unless otherwise provided for in this contract or approved by the Contracting Officer.
- (2) Modifications or alterations of Government property are prohibited, unless they are--
 - (i) Reasonable and necessary due to the scope of work under this contract or its terms and conditions;
 - (ii) Required for normal maintenance; or
 - (iii) Otherwise authorized by the Contracting Officer.
- (3) The Contractor shall not cannibalize Government property unless otherwise provided for in this contract or approved by the Contracting Officer.

(d) Government-furnished property.

- (1) The Government shall deliver to the Contractor the Government-furnished property described in this contract. The Government shall furnish related data and information needed for the intended use of the property. The warranties of suitability of use and timely delivery of Government-furnished property do not apply to property acquired or fabricated by the Contractor as contractor-acquired property and subsequently transferred to another contract with this Contractor.
- (2) The delivery and/or performance dates specified in this contract are based upon the expectation that the Government-furnished property will be suitable for contract performance and will be delivered to the Contractor by the dates stated in the contract.
 - (i) If the property is not delivered to the Contractor by the dates stated in the contract, the Contracting Officer shall, upon the Contractor's timely written request, consider an equitable adjustment to the contract.

(ii) In the event property is received by the Contractor, or for Government-furnished property after receipt and installation, in a condition not suitable for its intended use, the Contracting Officer shall, upon the Contractor's timely written request, advise the Contractor on a course of action to remedy the problem. Such action may include repairing, replacing, modifying, returning, or otherwise disposing of the property at the Government's expense. Upon completion of the required action(s), the Contracting Officer shall consider an equitable adjustment to the contract (see also paragraph (f)(1)(ii)(A) of this clause).

(iii) The Government may, at its option, furnish property in an "as-is" condition. The Contractor will be given the opportunity to inspect such property prior to the property being provided. In such cases, the Government makes no warranty with respect to the serviceability and/or suitability of the property for contract performance. Any repairs, replacement, and/or refurbishment shall be at the Contractor's expense.

(3)(i) The Contracting Officer may by written notice, at any time--

(A) Increase or decrease the amount of Government-furnished property under this contract;

(B) Substitute other Government-furnished property for the property previously furnished, to be furnished, or to be acquired by the Contractor for the Government under this contract; or

(C) Withdraw authority to use property.

(ii) Upon completion of any action(s) under paragraph (d)(3)(i) of this clause, and the Contractor's timely written request, the Contracting Officer shall consider an equitable adjustment to the contract.

(e) *Title to Government property.*

(1) All Government-furnished property and all property acquired by the Contractor, title to which vests in the Government under this paragraph (collectively referred to as "Government property"), is subject to the provisions of this clause. The Government shall retain title to all Government-furnished property. Title to Government property shall not be affected by its incorporation into or attachment to any property not owned by the Government, nor shall Government property become a fixture or lose its identity as personal property by being attached to any real property.

(2) Title vests in the Government for all property acquired or fabricated by the Contractor in accordance with the financing provisions or other specific requirements for passage of title in the contract. Under fixed price type contracts, in the absence of financing provisions or other specific requirements for passage of title in the contract, the Contractor retains title to all property acquired by the Contractor for use on the contract, except for property identified as a deliverable end item. If a deliverable item is to be retained by the Contractor for use after inspection and acceptance by the Government, it shall be made accountable to the contract through a contract modification listing the item as Government-furnished property.

(3) *Title under Cost-Reimbursement or Time-and-Material Contracts or Cost-Reimbursable line items under Fixed-Price contracts.*

(i) Title to all property purchased by the Contractor for which the Contractor is entitled to be reimbursed as a direct item of cost under this contract shall pass to and vest in the Government upon the vendor's delivery of such property.

(ii) Title to all other property, the cost of which is reimbursable to the Contractor, shall pass to and vest in the Government upon--

(A) Issuance of the property for use in contract performance;

(B) Commencement of processing of the property for use in contract performance; or

(C) Reimbursement of the cost of the property by the Government, whichever occurs first.

(f) *Contractor plans and systems.*

(1) Contractors shall establish and implement property management plans, systems, and procedures at the contract, program, site or entity level to enable the following outcomes:

(i) *Acquisition of Property.* The Contractor shall document that all property was acquired consistent with its engineering, production planning, and property control operations.

(ii) *Receipt of Government Property.* The Contractor shall receive Government property and document the receipt, record the information necessary to meet the record requirements of paragraph (f)(1)(iii)(A)(1) through (5) of this clause, identify as Government owned in a manner appropriate to the type of property (*e.g.*, stamp, tag, mark, or other identification), and manage any discrepancies incident to shipment.

(A) *Government-furnished property.* The Contractor shall furnish a written statement to the Property Administrator containing all relevant facts, such as cause or condition and a recommended course(s) of action, if overages, shortages, or damages and/or other discrepancies are discovered upon receipt of Government-furnished property.

(B) *Contractor-acquired property.* The Contractor shall take all actions necessary to adjust for overages, shortages, damage and/or other discrepancies discovered upon receipt, in shipment of Contractor-acquired property from a vendor or supplier, so as to ensure the proper allocability and allowability of associated costs.

(iii) *Records of Government property.* The Contractor shall create and maintain records of all Government property accountable to the contract, including Government-furnished and Contractor-acquired property.

(A) Property records shall enable a complete, current, auditable record of all transactions and shall, unless otherwise approved by the Property Administrator, contain the following:

(1) The name, part number and description, National Stock Number (if needed for additional item identification tracking and/or disposition), and other data elements as necessary and required in accordance with the terms and conditions of the contract.

(2) Quantity received (or fabricated), issued, and balance-on-hand.

(3) Unit acquisition cost.

(4) Unique-item identifier or equivalent (if available and necessary for individual item tracking).

(5) Unit of measure.

(6) Accountable contract number or equivalent code designation.

(7) Location.

(8) Disposition.

(9) Posting reference and date of transaction.

(10) Date placed in service (if required in accordance with the terms and conditions of the contract).

(B) *Use of a Receipt and Issue System for Government Material.* When approved by the Property Administrator, the Contractor may maintain, in lieu of formal property records, a file of appropriately cross-referenced documents evidencing receipt, issue, and use of material that is issued for immediate consumption.

(iv) *Physical inventory.* The Contractor shall periodically perform, record, and disclose physical inventory results. A final physical inventory shall be performed upon contract completion or termination. The Property Administrator may waive this final inventory requirement, depending on the circumstances (*e.g.*, overall reliability of the Contractor's system or the property is to be transferred to a follow-on contract).

(v) *Subcontractor control.*

(A) The Contractor shall award subcontracts that clearly identify items to be provided and the extent of any restrictions or limitations on their use. The Contractor shall ensure appropriate flow down of contract terms and conditions (*e.g.*, extent of liability for loss of Government property).

(B) The Contractor shall assure its subcontracts are properly administered and reviews are periodically performed to determine the adequacy of the subcontractor's property management system.

(vi) *Reports.* The Contractor shall have a process to create and provide reports of discrepancies, loss of Government property, physical inventory results, audits and self-assessments, corrective actions, and other property-related reports as directed by the Contracting Officer.

(vii) *Relief of stewardship responsibility and liability.* The Contractor shall have a process to enable the prompt recognition, investigation, disclosure and reporting of loss of Government property, including losses that occur at subcontractor or alternate site locations.

(A) This process shall include the corrective actions necessary to prevent recurrence.

(B) Unless otherwise directed by the Property Administrator, the Contractor shall investigate and report to the Government all incidents of property loss as soon as the facts become known. Such reports shall, at a minimum, contain the following information:

(1) Date of incident (if known).

(2) The data elements required under (f)(1)(iii)(A).

(3) Quantity.

(4) Accountable contract number.

(5) A statement indicating current or future need.

(6) Unit acquisition cost, or if applicable, estimated sales proceeds, estimated repair or replacement costs.

(7) All known interests in commingled material of which includes Government material.

(8) Cause and corrective action taken or to be taken to prevent recurrence.

(9) A statement that the Government will receive compensation covering the loss of Government property, in the event the Contractor was or will be reimbursed or compensated.

(10) Copies of all supporting documentation.

(11) Last known location.

(12) A statement that the property did or did not contain sensitive, export controlled, hazardous, or toxic material, and that the appropriate agencies and authorities were notified.

(C) Unless the contract provides otherwise, the Contractor shall be relieved of stewardship responsibility and liability for property when--

(1) Such property is consumed or expended, reasonably and properly, or otherwise accounted for, in the performance of the contract, including reasonable inventory adjustments of material as determined by the Property Administrator;

(2) Property Administrator grants relief of responsibility and liability for loss of Government property;

(3) Property is delivered or shipped from the Contractor's plant, under Government instructions, except when shipment is to a subcontractor or other location of the Contractor; or

(4) Property is disposed of in accordance with paragraphs (j) and (k) of this clause.

(viii) *Utilizing Government property.*

(A) The Contractor shall utilize, consume, move, and store Government Property only as authorized under this contract. The Contractor shall promptly disclose and report Government property in its possession that is excess to contract performance.

(B) Unless otherwise authorized in this contract or by the Property Administrator the Contractor shall not commingle Government material with material not owned by the Government.

(ix) *Maintenance.* The Contractor shall properly maintain Government property. The Contractor's maintenance program shall enable the identification, disclosure, and performance of normal and routine preventative maintenance and repair. The Contractor shall disclose and report to the Property Administrator the need for replacement and/or capital rehabilitation.

(x) *Property closeout.* The Contractor shall promptly perform and report to the Property Administrator contract property closeout, to include reporting, investigating and securing closure of all loss of Government property cases; physically inventorying all property upon termination or completion of this contract; and disposing of items at the time they are determined to be excess to contractual needs.

(2) The Contractor shall establish and maintain Government accounting source data, as may be required by this contract, particularly in the areas of recognition of acquisitions, loss of Government property, and disposition of material and equipment.

(g) *Systems analysis.*

(1) The Government shall have access to the Contractor's premises and all Government property, at reasonable times, for the purposes of reviewing, inspecting and evaluating the Contractor's property management plan(s), systems, procedures, records, and supporting documentation that pertains to Government property. This access includes all site locations and, with the Contractor's consent, all subcontractor premises.

(2) Records of Government property shall be readily available to authorized Government personnel and shall be appropriately safeguarded.

(3) Should it be determined by the Government that the Contractor's (or subcontractor's) property management practices are inadequate or not acceptable for the effective management and control of Government property under this contract, or present an undue risk to the Government, the Contractor shall prepare a corrective action plan when requested by the Property Administrator and take all necessary corrective actions as specified by the schedule within the corrective action plan.

(h) *Contractor Liability for Government Property.*

(1) Unless otherwise provided for in the contract, the Contractor shall not be liable for loss of Government property furnished or acquired under this contract, except when any one of the following applies--

(i) The risk is covered by insurance or the Contractor is otherwise reimbursed (to the extent of such insurance or reimbursement). The allowability of insurance costs shall be determined in accordance with 31.205-19.

(ii) Loss of Government property that is the result of willful misconduct or lack of good faith on the part of the Contractor's managerial personnel.

(iii) The Contracting Officer has, in writing, revoked the Government's assumption of risk for loss of Government property due to a determination under paragraph (g) of this clause that the Contractor's property management practices are inadequate, and/or present an undue risk to the Government, and the Contractor failed to take timely corrective action. If the Contractor can establish by clear and convincing evidence that the loss of Government property occurred while the Contractor had adequate property management practices or the loss did not result from the Contractor's failure to maintain adequate property management practices, the Contractor shall not be held liable.

(2) The Contractor shall take all reasonable actions necessary to protect the property from further loss. The Contractor shall separate the damaged and undamaged property, place all the affected property in the best possible order, and take such other action as the Property Administrator directs.

(3) The Contractor shall do nothing to prejudice the Government's rights to recover against third parties for any loss of Government property.

(4) The Contractor shall reimburse the Government for loss of Government property, to the extent that the Contractor is financially liable for such loss, as directed by the Contracting Officer.

(5) Upon the request of the Contracting Officer, the Contractor shall, at the Government's expense, furnish to the Government all reasonable assistance and cooperation, including the prosecution of suit and the execution of instruments of assignment in favor of the Government in obtaining recovery.

(i) *Equitable adjustment.* Equitable adjustments under this clause shall be made in accordance with the procedures of the Changes clause. However, the Government shall not be liable for breach of contract for the following:

- (1) Any delay in delivery of Government-furnished property.
- (2) Delivery of Government-furnished property in a condition not suitable for its intended use.
- (3) An increase, decrease, or substitution of Government-furnished property.
- (4) Failure to repair or replace Government property for which the Government is responsible.

(j) *Contractor inventory disposal.* Except as otherwise provided for in this contract, the Contractor shall not dispose of Contractor inventory until authorized to do so by the Plant Clearance Officer or authorizing official.

(1) *Predisposal requirements.*

(i) If the Contractor determines that the property has the potential to fulfill requirements under other contracts, the Contractor, in consultation with the Property Administrator, shall request that the Contracting Officer transfer the property to the contract in question, or provide authorization for use, as appropriate. In lieu of transferring the property, the Contracting Officer may authorize the Contractor to credit the costs of Contractor-acquired property (material only) to the losing contract, and debit the gaining contract with the corresponding cost, when such material is needed for use on another contract. Property no longer needed shall be considered contractor inventory.

(ii) For any remaining Contractor-acquired property, the Contractor may purchase the property at the unit acquisition cost if desired or make reasonable efforts to return unused property to the appropriate supplier at fair market value (less, if applicable, a reasonable restocking fee that is consistent with the supplier's customary practices.)

(2) *Inventory disposal schedules.*

(i) Absent separate contract terms and conditions for property disposition, and provided the property was not reutilized, transferred, or otherwise disposed of, the Contractor, as directed by the Plant Clearance Officer or authorizing official, shall use Standard Form 1428, Inventory Disposal Schedule or electronic equivalent, to identify and report--

(A) Government-furnished property that is no longer required for performance of this contract;

(B) Contractor-acquired property, to which the Government has obtained title under paragraph (e) of this clause, which is no longer required for performance of that contract; and

(C) Termination inventory.

(ii) The Contractor may annotate inventory disposal schedules to identify property the Contractor wishes to purchase from the Government, in the event that the property is offered for sale.

(iii) Separate inventory disposal schedules are required for aircraft in any condition, flight safety critical aircraft parts, and other items as directed by the Plant Clearance Officer.

(iv) The Contractor shall provide the information required by FAR 52.245-1(f)(1)(iii) along with the following:

(A) Any additional information that may facilitate understanding of the property's intended use.

(B) For work-in-progress, the estimated percentage of completion.

(C) For precious metals in raw or bulk form, the type of metal and estimated weight.

(D) For hazardous material or property contaminated with hazardous material, the type of hazardous material.

(E) For metals in mill product form, the form, shape, treatment, hardness, temper, specification (commercial or Government) and dimensions (thickness, width and length).

(v) Property with the same description, condition code, and reporting location may be grouped in a single line item.

(vi) Scrap should be reported by "lot" along with metal content, estimated weight and estimated value.

(3) Submission requirements.

(i) The Contractor shall submit inventory disposal schedules to the Plant Clearance Officer no later than--

(A) 30 days following the Contractor's determination that a property item is no longer required for performance of this contract;

(B) 60 days, or such longer period as may be approved by the Plant Clearance Officer, following completion of contract deliveries or performance; or

(C) 120 days, or such longer period as may be approved by the Termination Contracting Officer, following contract termination in whole or in part.

(ii) Unless the Plant Clearance Officer determines otherwise, the Contractor need not identify or report production scrap on inventory disposal schedules, and may process and dispose of production scrap in accordance with its own internal scrap procedures. The processing and disposal of other types of Government-owned scrap will be conducted in accordance with the terms and conditions of the contract or Plant Clearance Officer direction, as appropriate.

(4) Corrections. The Plant Clearance Officer may--

(i) Reject a schedule for cause (*e.g.*, contains errors, determined to be inaccurate); and

(ii) Require the Contractor to correct an inventory disposal schedule.

(5) Postsubmission adjustments. The Contractor shall notify the Plant Clearance Officer at least 10 working days in advance of its intent to remove an item from an approved inventory disposal schedule. Upon approval of the Plant Clearance Officer, or upon expiration of the notice period, the Contractor may make the necessary adjustments to the inventory schedule.

(6) Storage.

(i) The Contractor shall store the property identified on an inventory disposal schedule pending receipt of disposal instructions. The Government's failure to furnish disposal instructions within 120 days following acceptance of an inventory disposal schedule may entitle the Contractor to an equitable adjustment for costs incurred to store such property on or after the 121st day.

(ii) The Contractor shall obtain the Plant Clearance Officer's approval to remove property from the premises where the property is currently located prior to receipt of final disposition instructions. If approval is granted, any costs incurred by the Contractor to transport or store the property shall not increase the price or fee of any Government contract. The storage area shall be appropriate for assuring the property's physical safety and suitability for use. Approval does not relieve the Contractor of any liability for such property under this contract.

(7) Disposition instructions.

(i) The Contractor shall prepare for shipment, deliver f.o.b. origin, or dispose of Contractor inventory as directed by the Plant Clearance Officer. Unless otherwise directed by the Contracting Officer or by the Plant Clearance Officer, the Contractor shall remove and destroy any markings identifying the property as U.S. Government-owned property prior to its disposal.

(ii) The Contracting Officer may require the Contractor to demilitarize the property prior to shipment or disposal. In such cases, the Contractor may be entitled to an equitable adjustment under paragraph (i) of this clause.

(8) Disposal proceeds. As directed by the Contracting Officer, the Contractor shall credit the net proceeds from the disposal of Contractor inventory to the contract, or to the Treasury of the United States as miscellaneous receipts.

(9) Subcontractor inventory disposal schedules. The Contractor shall require its Subcontractors to submit inventory disposal schedules to the Contractor in accordance with the requirements of paragraph (j)(3) of this clause.

(k) Abandonment of Government property.

(1) The Government shall not abandon sensitive property or termination inventory without the Contractor's written consent.

(2) The Government, upon notice to the Contractor, may abandon any nonsensitive property in place, at which time all obligations of the Government regarding such property shall cease.

(3) Absent contract terms and conditions to the contrary, the Government may abandon parts removed and replaced from property as a result of normal maintenance actions, or removed from property as a result of the repair, maintenance, overhaul, or modification process.

(4) The Government has no obligation to restore or rehabilitate the Contractor's premises under any circumstances; however, if Government-furnished property is withdrawn or is unsuitable for the intended use, or if other Government property is substituted, then the equitable adjustment under paragraph (i) of this clause may properly include restoration or rehabilitation costs.

(l) *Communication.* All communications under this clause shall be in writing.

(m) *Contracts outside the United States.* If this contract is to be performed outside of the United States and its outlying areas, the words "Government" and "Government-furnished" (wherever they appear in this clause) shall be construed as "United States Government" and "United States Government-furnished," respectively.

(End of clause)

852.201-70 CONTRACTING OFFICER'S REPRESENTATIVE (DEC 2022)

The Contracting Officer reserves the right to designate representatives to act for him/her in furnishing technical guidance and advice or generally monitor the work to be performed under this contract. Such designation will be in writing and will define the scope and limitation of the designee's authority. A copy of the designation letter shall be furnished to the Contractor.

(End of clause)

852.203-70 COMMERCIAL ADVERTISING (MAY 2018)

The Contractor shall not make reference in its commercial advertising to Department of Veterans Affairs contracts in a manner that states or implies the Department of Veterans Affairs approves or endorses the Contractor's products or services or considers the Contractor's products or services superior to other products or services.

(End of clause)

852.219-73 VA NOTICE OF TOTAL SET-ASIDE FOR VERIFIED SERVICE-DISABLED VETERAN-OWNED SMALL BUSINESSES (NOV 2022)

(a) *Definition.* For the Department of Veterans Affairs, "*Service-disabled Veteran-owned small business concern or SDVOSB*":

(1) Means a small business concern-

(i) Not less than 51 percent of which is owned by one or more service-disabled Veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled Veterans or eligible surviving spouses (see VAAR 802.101, Surviving Spouse definition);

(ii) The management and daily business operations of which are controlled by one or more service-disabled Veterans (or eligible surviving spouses) or, in the case of a service-disabled Veteran with permanent and severe disability, the spouse or permanent caregiver of such Veteran;

(iii) The business meets Federal small business size standards for the applicable North American Industry Classification System (NAICS) code identified in the solicitation document;

(iv) The business has been verified for ownership and control pursuant to 38 CFR part 74 and is listed in VA's Vendor Information Pages (VIP) database at <https://www.vetbiz.va.gov/vip/>; and

(v) The business will comply with VAAR subpart 819.70 and Small Business Administration (SBA) regulations regarding small business size and government contracting programs at 13 CFR parts 121 and 125, provided that any reference therein to a service-

disabled veteran-owned small business concern or SDVO SBC, is to be construed to apply to a VA verified and VIP-listed SDVOSB, unless otherwise stated in this clause.

(2) The term “Service-disabled Veteran” means a Veteran, as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16).

(3) The term “small business concern” has the meaning given that term under section 3 of the Small Business Act (15 U.S.C. 632).

(4) The term “small business concern owned and controlled by Veterans with service-connected disabilities” has the meaning given the term “small business concern owned and controlled by service-disabled veterans” under section 3(q)(2) of the Small Business Act (15 U.S.C. 632(q)(2)), except that for a VA contract the firm must be listed in the VIP database (see paragraph (a)(1)(iv) of this clause).

(b) *General.* (1) Offers are solicited only from VIP-listed SDVOSBs. Offers received from entities that are not VIP-listed SDVOSBs at the time of offer shall not be considered.

(2) Any award resulting from this solicitation shall be made to a VIP-listed SDVOSB who is eligible at the time of submission of offer(s) and at the time of award.

(3) The requirements in this clause apply to any contract, order or subcontract where the firm receives a benefit or preference from its designation as an SDVOSB, including set-asides, sole source awards, and evaluation preferences.

(c) *Representation.* Pursuant to 38 U.S.C. 8127(e), only VIP-listed SDVOSBs are considered eligible to receive award of a resulting contract. By submitting an offer, the prospective contractor represents that it is an eligible SDVOSB as defined in this clause, 38 CFR part 74, and VAAR subpart 819.70.

(d) *Agreement.* When awarded a contract action, including orders under multiple-award contracts, an SDVOSB agrees that in the performance of the contract, the SDVOSB shall comply with requirements in VAAR subpart 819.70 and SBA regulations on small business size and government contracting programs at 13 CFR part 121 and part 125, including the non-manufacturer rule and limitations on subcontracting requirements in 13 CFR 121.406(b) and 13 CFR 125.6. Unless otherwise stated in this clause, a requirement in 13 CFR parts 121 and 125 that applies to an SDVO SBC, is to be construed to also apply to a VIP-listed SDVOSB. For the purpose of limitations on subcontracting, only VIP-listed SDVOSBs (including independent contractors) shall be considered eligible and/or “similarly situated” (i.e., a firm that has the same small business program status as the prime contractor). An otherwise eligible firm further agrees to comply with the required certification requirements in this solicitation (see 852.219-75 or 852.219-76 as applicable). These requirements are summarized as follows:

(1) *Services.* In the case of a contract for services (except construction), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance to firms that are not VIP-listed SDVOSBs (excluding direct costs to the extent they are not the principal purpose of the acquisition and the SDVOSB/VOSB does not provide the service, such as airline travel, cloud computing services, or mass media purchases). When a contract includes both services and supplies, the 50 percent limitation shall apply only to the service portion of the contract.

(2) *Supplies/products.* (i) In the case of a contract for supplies or products (other than from a non-manufacturer of such supplies), the SDVOSB prime contractor will not pay more than 50% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not VIP-listed SDVOSBs. When a contract includes both supply and services, the 50 percent limitation shall apply only to the supply portion of the contract.

(ii) In the case of a contract for supplies from a non-manufacturer, the SDVOSB prime contractor will supply the product of a domestic small business manufacturer or processor, unless a waiver as described in 13 CFR 121.406(b)(5) has been granted. Refer to 13 CFR 125.6(a)(2)(ii) for guidance pertaining to multiple item procurements.

(3) *General construction.* In the case of a contract for general construction, the SDVOSB prime contractor will not pay more than 85% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, to firms that are not VIP-listed SDVOSBs.

(4) *Special trade construction contractors.* In the case of a contract for special trade contractors, no more than 75% of the amount paid by the government to the prime for contract performance, excluding the cost of materials, may be paid to firms that are not VIP-listed SDVOSBs.

(5) *Subcontracting*. An SDVOSB must meet the NAICS size standard assigned by the prime contractor and be listed in VIP to count as similarly situated. Any work that a first tier VIP-listed SDVOSB subcontractor further subcontracts will count towards the percent of subcontract amount that cannot be exceeded. For supply or construction contracts, the cost of materials is excluded and not considered to be subcontracted. When a contract includes both services and supplies, the 50 percent limitation shall apply only to the portion of the contract with the preponderance of the expenditure upon which the assigned NAICS is based. For information and more specific requirements, refer to 13 CFR 125.6.

(e) *Required limitations on subcontracting compliance measurement period*. An SDVOSB shall comply with the limitations on subcontracting as follows:

[Contracting Officer check as appropriate.]

☒ By the end of the base term of the contract or order, and then by the end of each subsequent option period; or

☐ By the end of the performance period for each order issued under the contract.

(f) *Joint ventures*. A joint venture may be considered eligible as an SDVOSB if the joint venture is listed in VIP and complies with the requirements in 13 CFR 125.18(b), provided that any requirement therein that applies to an SDVO SBC is to be construed to apply to a VIP-listed SDVOSB. A joint venture agrees that, in the performance of the contract, the applicable percentage specified in paragraph (d) of this clause will be performed by the aggregate of the joint venture participants.

(g) *Precedence*. The VA Veterans First Contracting Program, as defined in VAAR 802.101, subpart 819.70, and this clause, takes precedence over any inconsistencies between the requirements of the SBA Program for SDVO SBCs, and the VA Veterans First Contracting Program.

(h) *Misrepresentation*. Pursuant to 38 USC 8127(g), any business concern, including all its principals, that is determined by VA to have willfully and intentionally misrepresented a company's SDVOSB status is subject to debarment from contracting with the Department for a period of not less than five years (see VAAR 809.406-2 Causes for Debarment).

(End of clause)

852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING-CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (NOV 2022)

(a) Pursuant to 38 U.S.C. 8127(k)(2), the offeror certifies that-

(1) If awarded a contract (see FAR 2.101 definition), it will comply with the limitations on subcontracting requirement as provided in the solicitation and the resultant contract, as follows: [Contracting Officer check the appropriate box below based on the predominant NAICS code assigned to the instant acquisition as set forth in FAR 19.102.]

(i) ☒ *Services*. In the case of a contract for services (except construction), the contractor will not pay more than 50% of the amount paid by the government to it to firms that are not VIP-listed SDVOSBs as set forth in 852.219-73 or VOSBs as set forth in 852.219-74. Any work that a similarly situated VIP-listed subcontractor further subcontracts will count towards the 50% subcontract amount that cannot be exceeded. Other direct costs may be excluded to the extent they are not the principal purpose of the acquisition and small business concerns do not provide the service as set forth in 13 CFR 125.6.

(ii) ☐ *General construction*. In the case of a contract for general construction, the contractor will not pay more than 85% of the amount paid by the government to it to firms that are not VIP-listed SDVOSBs as set forth in 852.219-73 or VOSBs as set forth in 852.219-74. Any work that a similarly situated VIP-listed subcontractor further subcontracts will count towards the 85% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(iii) ☐ *Special trade construction contractors*. In the case of a contract for special trade contractors, the contractor will not pay more than 75% of the amount paid by the government to it to firms that are not VIP-listed SDVOSBs as set forth in 852.219-73 or VOSBs as set forth in 852.219-74. Any work that a similarly situated subcontractor further subcontracts will count towards the 75% subcontract amount that cannot be exceeded. Cost of materials are excluded and not considered to be subcontracted.

(2) The offeror acknowledges that this certification concerns a matter within the jurisdiction of an Agency of the United States. The offeror further acknowledges that this certification is subject to Title 18, United States Code, Section 1001, and, as such, a

false, fictitious, or fraudulent certification may render the offeror subject to criminal, civil, or administrative penalties, including prosecution.

(3) If VA determines that an SDVOSB/VOSB awarded a contract pursuant to 38 U.S.C. 8127 did not act in good faith, such SDVOSB/VOSB shall be subject to any or all of the following:

- (i) Referral to the VA Suspension and Debarment Committee;
- (ii) A fine under section 16(g)(1) of the Small Business Act (15 U.S.C. 645(g)(1)); and
- (iii) Prosecution for violating section 1001 of title 18.

(b) The offeror represents and understands that by submission of its offer and award of a contract it may be required to provide copies of documents or records to VA that VA may review to determine whether the offeror complied with the limitations on subcontracting requirement specified in the contract. Contracting officers may, at their discretion, require the contractor to demonstrate its compliance with the limitations on subcontracting at any time during performance and upon completion of a contract if the information regarding such compliance is not already available to the contracting officer. Evidence of compliance includes, but is not limited to, invoices, copies of subcontracts, or a list of the value of tasks performed.

(c) The offeror further agrees to cooperate fully and make available any documents or records as may be required to enable VA to determine compliance with the limitations on subcontracting requirement. The offeror understands that failure to provide documents as requested by VA may result in remedial action as the Government deems appropriate.

(d) Offeror completed certification/fill-in required. The formal certification must be completed, signed and returned with the offeror's bid, quotation, or proposal. The Government will not consider offers for award from offerors that do not provide the certification, and all such responses will be deemed ineligible for evaluation and award.

Certification:

I hereby certify that if awarded the contract, _____ will comply with the limitations on subcontracting specified in this clause and in the resultant contract. I further certify that I am authorized to execute this certification on behalf of _____.

Printed Name of Signee: _____

Printed Title of Signee: _____

Signature: _____

Date: _____

Company Name and Address: _____

(End of clause)

852.222-71 (DEV) COMPLIANCE WITH EXECUTIVE ORDER 13899 (APR 2025) (DEVIATION APR 2025)

(a) The contractor shall comply with Executive Order 13899, Combating Anti-Semitism, pursuant to Title VI of the Civil Rights Act of 1964 (Title VI), 42 U.S.C. 2000d et seq.

(b) The contractor shall timely disclose, in writing, to the Contracting Officer, whenever, in connection with the award, performance, or closeout of this contract or any subcontract thereunder, the Contractor has credible evidence that a principle, employee, agent, or subcontractor of the Contractor has committed a violation under Executive Order 13899, Combating Anti-Semitism pursuant to the Civil Rights Act of 1964 (Title VI), 42 U.S.C. 2000d et seq.

(c) The contractor shall include the terms and conditions of this clause in every subcontract or purchase order so that these terms will be binding on every subcontractor or vendor.

End of clause.

Section 3 - Documents, Exhibits, or Attachments

Title	Dates	Number of Pages
PAST PERFORMANCE QUESTIONNAIRE_04122026.docx	04/13/2026	

"

REGISTER OF WAGE DETERMINATIONS UNDER
THE SERVICE CONTRACT ACT
By direction of the Secretary of Labor

U.S. DEPARTMENT OF LABOR
EMPLOYMENT STANDARDS ADMINISTRATION
WAGE AND HOUR DIVISION
WASHINGTON D.C. 20210

Daniel W. Simms Division of
Director Wage Determinations

Wage Determination No.: 2015-5469
Revision No.: 30
Date Of Last Revision: 3/30/2026

State: Arizona

Area: Arizona Counties of Maricopa and Pinal

****Fringe Benefits Required Follow the Occupational Listing****

OCCUPATION CODE - TITLE	FOOTNOTE	RATE
01000 - Administrative Support And Clerical Occupations		
01011 - Accounting Clerk I		19.04
01012 - Accounting Clerk II		21.38
01013 - Accounting Clerk III		23.91
01020 - Administrative Assistant		34.63
01035 - Court Reporter		31.80
01041 - Customer Service Representative I		17.42
01042 - Customer Service Representative II		19.01
01043 - Customer Service Representative III		21.34
01051 - Data Entry Operator I		18.35
01052 - Data Entry Operator II		20.02
01060 - Dispatcher, Motor Vehicle		22.74
01070 - Document Preparation Clerk		17.45
01090 - Duplicating Machine Operator		17.45
01111 - General Clerk I		18.62
01112 - General Clerk II		20.32
01113 - General Clerk III		22.81
01120 - Housing Referral Assistant		24.26
01141 - Messenger Courier		18.17
01191 - Order Clerk I		20.92
01192 - Order Clerk II		22.83
01261 - Personnel Assistant (Employment) I		19.34
01262 - Personnel Assistant (Employment) II		21.64
01263 - Personnel Assistant (Employment) III		24.12
01270 - Production Control Clerk		26.94
01290 - Rental Clerk		20.50
01300 - Scheduler, Maintenance		19.45

01311 - Secretary I	19.45
01312 - Secretary II	21.75
01313 - Secretary III	24.26
01320 - Service Order Dispatcher	20.33
01410 - Supply Technician	34.63
01420 - Survey Worker	19.84
01460 - Switchboard Operator/Receptionist	18.57
01531 - Travel Clerk I	19.76
01532 - Travel Clerk II	22.16
01533 - Travel Clerk III	24.79
01611 - Word Processor I	18.35
01612 - Word Processor II	20.60
01613 - Word Processor III	23.04
05000 - Automotive Service Occupations	
05005 - Automobile Body Repairer, Fiberglass	24.54
05010 - Automotive Electrician	22.61
05040 - Automotive Glass Installer	20.93
05070 - Automotive Worker	20.93
05110 - Mobile Equipment Servicer	17.54
05130 - Motor Equipment Metal Mechanic	24.26
05160 - Motor Equipment Metal Worker	20.93
05190 - Motor Vehicle Mechanic	24.26
05220 - Motor Vehicle Mechanic Helper	15.81
05250 - Motor Vehicle Upholstery Worker	19.23
05280 - Motor Vehicle Wrecker	20.93
05310 - Painter, Automotive	22.61
05340 - Radiator Repair Specialist	20.93
05370 - Tire Repairer	18.11
05400 - Transmission Repair Specialist	24.26
07000 - Food Preparation And Service Occupations	
07010 - Baker	18.26
07041 - Cook I	19.34
07042 - Cook II	23.08
07070 - Dishwasher	17.05
07130 - Food Service Worker	17.32
07210 - Meat Cutter	19.22
07260 - Waiter/Waitress	18.10
09000 - Furniture Maintenance And Repair Occupations	
09010 - Electrostatic Spray Painter	22.03
09040 - Furniture Handler	10.88
09080 - Furniture Refinisher	18.60
09090 - Furniture Refinisher Helper	13.00
09110 - Furniture Repairer, Minor	15.82
09130 - Upholsterer	22.13
11000 - General Services And Support Occupations	
11030 - Cleaner, Vehicles	17.13
11060 - Elevator Operator	17.50
11090 - Gardener	25.02
11122 - Housekeeping Aide	17.58
11150 - Janitor	17.58
11210 - Laborer, Grounds Maintenance	18.34
11240 - Maid or Houseman	17.39
11260 - Pruner	17.50
11270 - Tractor Operator	22.55
11330 - Trail Maintenance Worker	18.34
11360 - Window Cleaner	18.42
12000 - Health Occupations	
12010 - Ambulance Driver	18.59
12011 - Breath Alcohol Technician	31.67
12012 - Certified Occupational Therapist Assistant	36.45

12015 - Certified Physical Therapist Assistant	31.38
12020 - Dental Assistant	23.81
12025 - Dental Hygienist	47.08
12030 - EKG Technician	31.73
12035 - Electroneurodiagnostic Technologist	31.73
12040 - Emergency Medical Technician	18.59
12071 - Licensed Practical Nurse I	28.31
12072 - Licensed Practical Nurse II	31.67
12073 - Licensed Practical Nurse III	35.32
12100 - Medical Assistant	22.16
12130 - Medical Laboratory Technician	28.71
12160 - Medical Record Clerk	21.84
12190 - Medical Record Technician	24.43
12195 - Medical Transcriptionist	19.10
12210 - Nuclear Medicine Technologist	48.40
12221 - Nursing Assistant I	14.89
12222 - Nursing Assistant II	16.75
12223 - Nursing Assistant III	18.28
12224 - Nursing Assistant IV	20.52
12235 - Optical Dispenser	22.57
12236 - Optical Technician	21.00
12250 - Pharmacy Technician	23.02
12280 - Phlebotomist	20.59
12305 - Radiologic Technologist	41.08
12311 - Registered Nurse I	29.04
12312 - Registered Nurse II	35.52
12313 - Registered Nurse II, Specialist	35.52
12314 - Registered Nurse III	42.97
12315 - Registered Nurse III, Anesthetist	42.97
12316 - Registered Nurse IV	51.50
12317 - Scheduler (Drug and Alcohol Testing)	39.25
12320 - Substance Abuse Treatment Counselor	29.74
13000 - Information And Arts Occupations	
13011 - Exhibits Specialist I	21.09
13012 - Exhibits Specialist II	26.12
13013 - Exhibits Specialist III	31.94
13041 - Illustrator I	20.88
13042 - Illustrator II	25.86
13043 - Illustrator III	31.63
13047 - Librarian	29.43
13050 - Library Aide/Clerk	18.35
13054 - Library Information Technology Systems Administrator	26.58
13058 - Library Technician	17.68
13061 - Media Specialist I	19.16
13062 - Media Specialist II	21.44
13063 - Media Specialist III	23.91
13071 - Photographer I	18.14
13072 - Photographer II	20.29
13073 - Photographer III	25.14
13074 - Photographer IV	30.75
13075 - Photographer V	37.21
13090 - Technical Order Library Clerk	23.04
13110 - Video Teleconference Technician	22.35
14000 - Information Technology Occupations	
14041 - Computer Operator I	21.33
14042 - Computer Operator II	23.86
14043 - Computer Operator III	26.61
14044 - Computer Operator IV	29.56
14045 - Computer Operator V	32.74
14071 - Computer Programmer I	(see 1) 25.33
14072 - Computer Programmer II	(see 1)
14073 - Computer Programmer III	(see 1)

14074 - Computer Programmer IV	(see 1)	
14101 - Computer Systems Analyst I	(see 1)	
14102 - Computer Systems Analyst II	(see 1)	
14103 - Computer Systems Analyst III	(see 1)	
14150 - Peripheral Equipment Operator		21.33
14160 - Personal Computer Support Technician		29.56
14170 - System Support Specialist		32.74
15000 - Instructional Occupations		
15010 - Aircrew Training Devices Instructor (Non-Rated)		34.83
15020 - Aircrew Training Devices Instructor (Rated)		42.14
15030 - Air Crew Training Devices Instructor (Pilot)		50.52
15050 - Computer Based Training Specialist / Instructor		34.83
15060 - Educational Technologist		30.67
15070 - Flight Instructor (Pilot)		50.52
15080 - Graphic Artist		25.92
15085 - Maintenance Test Pilot, Fixed, Jet/Prop		50.52
15086 - Maintenance Test Pilot, Rotary Wing		50.52
15088 - Non-Maintenance Test/Co-Pilot		50.52
15090 - Technical Instructor		26.08
15095 - Technical Instructor/Course Developer		31.90
15110 - Test Proctor		21.06
15120 - Tutor		21.06
16000 - Laundry, Dry-Cleaning, Pressing And Related Occupations		
16010 - Assembler		19.74
16030 - Counter Attendant		19.74
16040 - Dry Cleaner		22.58
16070 - Finisher, Flatwork, Machine		19.74
16090 - Presser, Hand		19.74
16110 - Presser, Machine, Drycleaning		19.74
16130 - Presser, Machine, Shirts		19.74
16160 - Presser, Machine, Wearing Apparel, Laundry		19.74
16190 - Sewing Machine Operator		23.52
16220 - Tailor		24.47
16250 - Washer, Machine		20.69
19000 - Machine Tool Operation And Repair Occupations		
19010 - Machine-Tool Operator (Tool Room)		26.07
19040 - Tool And Die Maker		32.49
21000 - Materials Handling And Packing Occupations		
21020 - Forklift Operator		22.75
21030 - Material Coordinator		26.94
21040 - Material Expediter		26.94
21050 - Material Handling Laborer		19.05
21071 - Order Filler		18.18
21080 - Production Line Worker (Food Processing)		22.75
21110 - Shipping Packer		20.93
21130 - Shipping/Receiving Clerk		20.93
21140 - Store Worker I		15.91
21150 - Stock Clerk		19.17
21210 - Tools And Parts Attendant		22.75
21410 - Warehouse Specialist		22.75
23000 - Mechanics And Maintenance And Repair Occupations		
23010 - Aerospace Structural Welder		40.47
23019 - Aircraft Logs and Records Technician		30.36
23021 - Aircraft Mechanic I		38.29
23022 - Aircraft Mechanic II		40.47
23023 - Aircraft Mechanic III		42.63
23040 - Aircraft Mechanic Helper		24.95

23050 - Aircraft, Painter	35.69
23060 - Aircraft Servicer	30.36
23070 - Aircraft Survival Flight Equipment Technician	35.69
23080 - Aircraft Worker	33.04
23091 - Aircrew Life Support Equipment (ALSE) Mechanic I	33.04
23092 - Aircrew Life Support Equipment (ALSE) Mechanic II	38.29
23110 - Appliance Mechanic	25.36
23120 - Bicycle Repairer	22.65
23125 - Cable Splicer	50.70
23130 - Carpenter, Maintenance	27.50
23140 - Carpet Layer	23.34
23160 - Electrician, Maintenance	28.56
23181 - Electronics Technician Maintenance I	31.20
23182 - Electronics Technician Maintenance II	33.71
23183 - Electronics Technician Maintenance III	36.16
23260 - Fabric Worker	24.84
23290 - Fire Alarm System Mechanic	28.08
23310 - Fire Extinguisher Repairer	22.65
23311 - Fuel Distribution System Mechanic	38.68
23312 - Fuel Distribution System Operator	27.97
23370 - General Maintenance Worker	23.29
23380 - Ground Support Equipment Mechanic	38.29
23381 - Ground Support Equipment Servicer	30.36
23382 - Ground Support Equipment Worker	33.04
23391 - Gunsmith I	22.65
23392 - Gunsmith II	27.03
23393 - Gunsmith III	31.33
23410 - Heating, Ventilation And Air-Conditioning Mechanic	26.38
23411 - Heating, Ventilation And Air Contidioning Mechanic (Research Facility)	27.89
23430 - Heavy Equipment Mechanic	29.71
23440 - Heavy Equipment Operator	29.91
23460 - Instrument Mechanic	29.76
23465 - Laboratory/Shelter Mechanic	29.21
23470 - Laborer	19.05
23510 - Locksmith	23.41
23530 - Machinery Maintenance Mechanic	31.78
23550 - Machinist, Maintenance	27.36
23580 - Maintenance Trades Helper	21.05
23591 - Metrology Technician I	29.76
23592 - Metrology Technician II	31.45
23593 - Metrology Technician III	33.10
23640 - Millwright	36.25
23710 - Office Appliance Repairer	19.94
23760 - Painter, Maintenance	22.94
23790 - Pipefitter, Maintenance	31.44
23810 - Plumber, Maintenance	29.30
23820 - Pneudraulic Systems Mechanic	31.33
23850 - Rigger	31.67
23870 - Scale Mechanic	27.03
23890 - Sheet-Metal Worker, Maintenance	25.64
23910 - Small Engine Mechanic	22.20
23931 - Telecommunications Mechanic I	32.26
23932 - Telecommunications Mechanic II	34.10
23950 - Telephone Lineman	28.04
23960 - Welder, Combination, Maintenance	25.69
23965 - Well Driller	30.29
23970 - Woodcraft Worker	31.33
23980 - Woodworker	22.65
24000 - Personal Needs Occupations	

24550 - Case Manager	19.91
24570 - Child Care Attendant	17.41
24580 - Child Care Center Clerk	21.70
24610 - Chore Aide	17.54
24620 - Family Readiness And Support Services Coordinator	19.91
24630 - Homemaker	19.91
25000 - Plant And System Operations Occupations	
25010 - Boiler Tender	36.18
25040 - Sewage Plant Operator	29.78
25070 - Stationary Engineer	36.18
25190 - Ventilation Equipment Tender	23.58
25210 - Water Treatment Plant Operator	29.78
27000 - Protective Service Occupations	
27004 - Alarm Monitor	28.72
27007 - Baggage Inspector	18.54
27008 - Corrections Officer	26.95
27010 - Court Security Officer	28.30
27030 - Detection Dog Handler	20.74
27040 - Detention Officer	26.95
27070 - Firefighter	29.46
27101 - Guard I	18.54
27102 - Guard II	20.74
27131 - Police Officer I	39.63
27132 - Police Officer II	44.04
28000 - Recreation Occupations	
28041 - Carnival Equipment Operator	19.41
28042 - Carnival Equipment Repairer	21.53
28043 - Carnival Worker	15.06
28210 - Gate Attendant/Gate Tender	21.13
28310 - Lifeguard	17.00
28350 - Park Attendant (Aide)	23.63
28510 - Recreation Aide/Health Facility Attendant	17.26
28515 - Recreation Specialist	29.28
28630 - Sports Official	18.83
28690 - Swimming Pool Operator	25.69
29000 - Stevedoring/Longshoremen Occupational Services	
29010 - Blocker And Bracer	32.35
29020 - Hatch Tender	32.35
29030 - Line Handler	32.35
29041 - Stevedore I	29.72
29042 - Stevedore II	34.97
30000 - Technical Occupations	
30010 - Air Traffic Control Specialist, Center (HFO)	(see 2) 48.20
30011 - Air Traffic Control Specialist, Station (HFO)	(see 2) 33.23
30012 - Air Traffic Control Specialist, Terminal (HFO)	(see 2) 36.59
30021 - Archeological Technician I	19.65
30022 - Archeological Technician II	21.98
30023 - Archeological Technician III	27.22
30030 - Cartographic Technician	27.22
30040 - Civil Engineering Technician	32.43
30051 - Cryogenic Technician I	30.15
30052 - Cryogenic Technician II	33.29
30061 - Drafter/CAD Operator I	19.65
30062 - Drafter/CAD Operator II	21.98
30063 - Drafter/CAD Operator III	24.49
30064 - Drafter/CAD Operator IV	30.15

30081 - Engineering Technician I	16.72
30082 - Engineering Technician II	18.76
30083 - Engineering Technician III	21.48
30084 - Engineering Technician IV	26.00
30085 - Engineering Technician V	31.81
30086 - Engineering Technician VI	38.48
30090 - Environmental Technician	27.96
30095 - Evidence Control Specialist	27.22
30210 - Laboratory Technician	29.92
30221 - Latent Fingerprint Technician I	30.01
30222 - Latent Fingerprint Technician II	33.14
30240 - Mathematical Technician	31.22
30361 - Paralegal/Legal Assistant I	23.31
30362 - Paralegal/Legal Assistant II	28.46
30363 - Paralegal/Legal Assistant III	34.82
30364 - Paralegal/Legal Assistant IV	42.13
30375 - Petroleum Supply Specialist	33.29
30390 - Photo-Optics Technician	27.22
30395 - Radiation Control Technician	33.29
30461 - Technical Writer I	26.68
30462 - Technical Writer II	32.63
30463 - Technical Writer III	39.48
30491 - Unexploded Ordnance (UXO) Technician I	30.63
30492 - Unexploded Ordnance (UXO) Technician II	37.06
30493 - Unexploded Ordnance (UXO) Technician III	44.42
30494 - Unexploded (UXO) Safety Escort	30.63
30495 - Unexploded (UXO) Sweep Personnel	30.63
30501 - Weather Forecaster I	30.15
30502 - Weather Forecaster II	36.67
30620 - Weather Observer, Combined Upper Air Or	
Surface Programs	(see 2) 24.49
30621 - Weather Observer, Senior	(see 2) 27.22
31000 - Transportation/Mobile Equipment Operation Occupations	
31010 - Airplane Pilot	37.06
31020 - Bus Aide	17.93
31030 - Bus Driver	26.83
31043 - Driver Courier	21.57
31260 - Parking and Lot Attendant	15.87
31290 - Shuttle Bus Driver	17.66
31310 - Taxi Driver	15.07
31361 - Truckdriver, Light	23.93
31362 - Truckdriver, Medium	26.25
31363 - Truckdriver, Heavy	26.60
31364 - Truckdriver, Tractor-Trailer	26.60
99000 - Miscellaneous Occupations	
99020 - Cabin Safety Specialist	18.07
99030 - Cashier	16.20
99050 - Desk Clerk	17.29
99095 - Embalmer	28.19
99130 - Flight Follower	30.63
99251 - Laboratory Animal Caretaker I	18.48
99252 - Laboratory Animal Caretaker II	20.50
99260 - Marketing Analyst	34.22
99310 - Mortician	28.19
99410 - Pest Controller	21.62
99510 - Photofinishing Worker	19.96
99710 - Recycling Laborer	24.17
99711 - Recycling Specialist	31.02
99730 - Refuse Collector	20.99
99810 - Sales Clerk	17.09
99820 - School Crossing Guard	16.35
99830 - Survey Party Chief	33.32
99831 - Surveying Aide	20.06

99832 - Surveying Technician	28.29
99840 - Vending Machine Attendant	19.32
99841 - Vending Machine Repairer	25.56
99842 - Vending Machine Repairer Helper	19.32

Note: Executive Order (EO) 13706, Establishing Paid Sick Leave for Federal Contractors, applies to all contracts subject to the Service Contract Act for which the contract is awarded (and any solicitation was issued) on or after January 1, 2017. If this contract is covered by the EO, the contractor must provide employees with 1 hour of paid sick leave for every 30 hours they work, up to 56 hours of paid sick leave each year. Employees must be permitted to use paid sick leave for their own illness, injury or other health-related needs, including preventive care; to assist a family member (or person who is like family to the employee) who is ill, injured, or has other health-related needs, including preventive care; or for reasons resulting from, or to assist a family member (or person who is like family to the employee) who is the victim of, domestic violence, sexual assault, or stalking. Additional information on contractor requirements and worker protections under the EO is available at www.dol.gov/whd/govcontracts.

Note: Executive Order 13658 generally applies to contracts subject to the Service Contract Act that were awarded on or between January 1, 2015 and January 29, 2022, and that have not been renewed or extended on or after January 30, 2022. If a contract is subject to Executive Order 13658, the contractor must pay all covered workers at least \$13.30 per hour (or the applicable wage rate listed on this wage determination, if it is higher) for all hours spent performing on the contract in 2025. The applicable Executive Order minimum wage rate will be adjusted annually. Additional information on contractor requirements and worker protections under Executive Order 13658 is available at www.dol.gov/whd/govcontracts.

ALL OCCUPATIONS LISTED ABOVE RECEIVE THE FOLLOWING BENEFITS:

HEALTH & WELFARE: \$5.55 per hour, up to 40 hours per week, or \$222.00 per week or \$962.00 per month

HEALTH & WELFARE EO 13706: \$5.09 per hour, up to 40 hours per week, or \$203.60 per week, or \$882.27 per month*

*This rate is to be used only when compensating employees for performance on an SCA-covered contract also covered by EO 13706, Establishing Paid Sick Leave for Federal Contractors. A contractor may not receive credit toward its SCA obligations for any paid sick leave provided pursuant to EO 13706.

VACATION: 2 weeks paid vacation after 1 year of service with a contractor or successor, 3 weeks after 5 years, and 4 weeks after 15 years. Length of service includes the whole span of continuous service with the present contractor or successor, wherever employed, and with the predecessor contractors in the performance of similar work at the same Federal facility. (Reg. 29 CFR 4.173)

HOLIDAYS: A minimum of eleven paid holidays per year: New Year's Day, Martin Luther King Jr.'s Birthday, Washington's Birthday, Memorial Day, Juneteenth National Independence Day, Independence Day, Labor Day, Columbus Day, Veterans' Day, Thanksgiving Day, and Christmas Day. (A contractor may substitute for any of the named holidays another day off with pay in accordance with a plan communicated to the employees involved.) (See 29 CFR 4.174)

THE OCCUPATIONS WHICH HAVE NUMBERED FOOTNOTES IN PARENTHESES RECEIVE THE FOLLOWING:

1) COMPUTER EMPLOYEES: This wage determination does not apply to any individual employed in a bona fide executive, administrative, or professional capacity, as defined in 29 C.F.R. Part 541. (See 41 C.F.R. 6701(3)). Because most Computer Systems Analysts and Computer Programmers who are paid at least \$27.63 per hour (or at least \$684 per week if paid on a salary or fee basis) likely qualify as exempt computer professionals under 29 U.S.C. 213(a)(1) and 29 U.S.C. 213(a)(17), this wage

determination may not include wage rates for all occupations within those job families. In such instances, a conformance will be necessary if there are nonexempt employees in these job families working on the contract.

Job titles vary widely and change quickly in the computer industry, and are not determinative of whether an employee is an exempt computer professional. To be exempt, computer employees who satisfy the compensation requirements must also have a primary duty that consists of:

(1) The application of systems analysis techniques and procedures, including consulting with users, to determine hardware, software or system functional specifications;

(2) The design, development, documentation, analysis, creation, testing or modification of computer systems or programs, including prototypes, based on and related to user or system design specifications;

(3) The design, documentation, testing, creation or modification of computer programs related to machine operating systems; or

(4) A combination of the aforementioned duties, the performance of which requires the same level of skills. (29 C.F.R. 541.400).

Any computer employee who meets the applicable compensation requirements and the above duties test qualifies as an exempt computer professional under both section 13(a)(1) and section 13(a)(17) of the Fair Labor Standards Act. (Field Assistance Bulletin No. 2006-3 (Dec. 14, 2006)). Accordingly, this wage determination will not apply to any exempt computer employee regardless of which of these two exemptions is utilized.

2) AIR TRAFFIC CONTROLLERS AND WEATHER OBSERVERS - NIGHT PAY & SUNDAY PAY: If you work at night as part of a regular tour of duty, you will earn a night differential and receive an additional 10% of basic pay for any hours worked between 6pm and 6am. If you are a full-time employee (40 hours a week) and Sunday is part of your regularly scheduled workweek, you are paid at your rate of basic pay plus a Sunday premium of 25% of your basic rate for each hour of Sunday work which is not overtime (i.e. occasional work on Sunday outside the normal tour of duty is considered overtime work).

**** HAZARDOUS PAY DIFFERENTIAL ****

An 8 percent differential is applicable to employees employed in a position that represents a high degree of hazard when working with or in close proximity to ordnance, explosives, and incendiary materials. This includes work such as screening, blending, dying, mixing, and pressing of sensitive ordnance, explosives, and pyrotechnic compositions such as lead azide, black powder and photoflash powder.

All dry-house activities involving propellants or explosives. Demilitarization, modification, renovation, demolition, and maintenance operations on sensitive ordnance, explosives and incendiary materials. All operations involving re-grading and cleaning of artillery ranges.

A 4 percent differential is applicable to employees employed in a position that represents a low degree of hazard when working with, or in close proximity to ordnance, (or employees possibly adjacent to) explosives and incendiary materials which involves potential injury such as laceration of hands, face, or arms of the employee engaged in the operation, irritation of the skin, minor burns and the like; minimal damage to immediate or adjacent work area or equipment being used. All operations involving, unloading, storage, and hauling of ordnance, explosive, and incendiary ordnance material other than small arms ammunition. These differentials are only applicable to work that has been specifically designated by the agency for ordnance, explosives, and incendiary material differential pay.

**** UNIFORM ALLOWANCE ****

If employees are required to wear uniforms in the performance of this contract (either by the terms of the Government contract, by the employer, by the state or local law, etc.), the cost of furnishing such uniforms and maintaining (by laundering or dry cleaning) such uniforms is an expense that may not be borne by an employee where such cost reduces the hourly rate below that required by the wage determination. The Department of Labor will accept payment in accordance with the following standards as compliance:

The contractor or subcontractor is required to furnish all employees with an adequate number of uniforms without cost or to reimburse employees for the actual cost of the uniforms. In addition, where uniform cleaning and maintenance is made the responsibility of the employee, all contractors and subcontractors subject to this wage determination shall (in the absence of a bona fide collective bargaining agreement providing for a different amount, or the furnishing of contrary affirmative proof as to the actual cost), reimburse all employees for such cleaning and maintenance at a rate of \$3.35 per week (or \$.67 cents per day). However, in those instances where the uniforms furnished are made of ""wash and wear"" materials, may be routinely washed and dried with other personal garments, and do not require any special treatment such as dry cleaning, daily washing, or commercial laundering in order to meet the cleanliness or appearance standards set by the terms of the Government contract, by the contractor, by law, or by the nature of the work, there is no requirement that employees be reimbursed for uniform maintenance costs.

**** SERVICE CONTRACT ACT DIRECTORY OF OCCUPATIONS ****

The duties of employees under job titles listed are those described in the ""Service Contract Act Directory of Occupations"", Fifth Edition (Revision 1), dated September 2015, unless otherwise indicated.

**** REQUEST FOR AUTHORIZATION OF ADDITIONAL CLASSIFICATION AND WAGE RATE, Standard Form 1444 (SF-1444) ****

Conformance Process:

The contracting officer shall require that any class of service employee which is not listed herein and which is to be employed under the contract (i.e., the work to be performed is not performed by any classification listed in the wage determination), be classified by the contractor so as to provide a reasonable relationship (i.e., appropriate level of skill comparison) between such unlisted classifications and the classifications listed in the wage determination (See 29 CFR 4.6(b)(2)(i)). Such conforming procedures shall be initiated by the contractor prior to the performance of contract work by such unlisted class(es) of employees (See 29 CFR 4.6(b)(2)(ii)). The Wage and Hour Division shall make a final determination of conformed classification, wage rate, and/or fringe benefits which shall be paid to all employees performing in the classification from the first day of work on which contract work is performed by them in the classification. Failure to pay such unlisted employees the compensation agreed upon by the interested parties and/or fully determined by the Wage and Hour Division retroactive to the date such class of employees commenced contract work shall be a violation of the Act and this contract. (See 29 CFR 4.6(b)(2)(v)). When multiple wage determinations are included in a contract, a separate SF-1444 should be prepared for each wage determination to which a class(es) is to be conformed.

The process for preparing a conformance request is as follows:

- 1) When preparing the bid, the contractor identifies the need for a conformed occupation(s) and computes a proposed rate(s).
- 2) After contract award, the contractor prepares a written report listing in order the proposed classification title(s), a Federal grade equivalency (FGE) for each proposed classification(s), job description(s), and rationale for proposed wage rate(s), including information regarding the agreement or disagreement of the authorized representative of the employees involved, or where there is no authorized representative, the employees themselves. This report should be submitted to the contracting officer no later than 30 days after such unlisted class(es) of employees

performs any contract work.

3) The contracting officer reviews the proposed action and promptly submits a report of the action, together with the agency's recommendations and pertinent information including the position of the contractor and the employees, to the U.S. Department of Labor, Wage and Hour Division, for review (See 29 CFR 4.6(b)(2)(ii)).

4) Within 30 days of receipt, the Wage and Hour Division approves, modifies, or disapproves the action via transmittal to the agency contracting officer, or notifies the contracting officer that additional time will be required to process the request.

5) The contracting officer transmits the Wage and Hour Division's decision to the contractor.

6) Each affected employee shall be furnished by the contractor with a written copy of such determination or it shall be posted as a part of the wage determination (See 29 CFR 4.6(b)(2)(iii)).

Information required by the Regulations must be submitted on SF-1444 or bond paper.

When preparing a conformance request, the ""Service Contract Act Directory of Occupations"" should be used to compare job definitions to ensure that duties requested are not performed by a classification already listed in the wage determination. Remember, it is not the job title, but the required tasks that determine whether a class is included in an established wage determination. Conformances may not be used to artificially split, combine, or subdivide classifications listed in the wage determination (See 29 CFR 4.152(c)(1)).""

Section 4 - Solicitation Provisions

52.252-1 Solicitation Provisions Incorporated by Reference (Feb 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

www.acquisition.gov/browse/index/far (FAR)

www.va.gov/oal/library/vaar/index.asp (VAAR)

[Insert one or more Internet addresses]

(End of provision)

Provision	Title	Fill-ins
52.203-11	Certification And Disclosure Regarding Payments to Influence Certain Federal Transactions (Sept 2024)	
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements--Representation (Jan 2017)	
52.204-7 (DEV)	System for Award Management - Registration (NOV 2024) (DEVIATION NOV 2025)	
852.233-70	PROTEST CONTENT/ALTERNATIVE DISPUTE RESOLUTION (OCT 2018)	

52.209-7 Information Regarding Responsibility Matters (Oct 2018)

(a) *Definitions.* As used in this provision--

"Administrative proceeding" means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

"Federal contracts and grants with total value greater than \$10,000,000" means--

(1) The total value of all current, active contracts and grants, including all priced options; and

(2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

"Principal" means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ___ has ___ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

(i) In a criminal proceeding, a conviction.

(ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.

(iii) In an administrative proceeding, a finding of fault and liability that results in--

(A) The payment of a monetary fine or penalty of \$5,000 or more; or

(B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.212-1 (DEV) Instructions to Offerors-Commercial Products and Commercial Services (SEP 2023) (DEVIATION AUG 2025)

(a) *Submission of offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified in this solicitation. As a minimum, offers shall include-

(1) The solicitation number;

(2) The name, address, telephone number of the Offeror;

(3) The Offeror's Unique Entity Identifier (UEI) and, if applicable, Electronic Funds Transfer (EFT) indicator;

(4) Information necessary to evaluate the factors contained in the provision at 52.212-2 or as described in the solicitation;

(5) Responses to provisions that require Offeror completion of information, representations, and certifications (other than those collected via the System for Award Management (SAM)); and

(6) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and any solicitation amendments.

(b) *Period for acceptance of offers.* The Offeror agrees to hold the prices in its offer firm for 60 calendar days from the date specified for receipt of offers, unless another time period is specified in an addendum to the solicitation.

(c) *Late submissions, modifications, revisions, and withdrawals of offers.*

(1) Offerors are responsible for submitting offers and any modifications or revisions to the Government office designated in the solicitation by the time specified in the solicitation.

(2) Any offer, modification, or revision received after the time specified for receipt of offers is “late” and will not be considered unless it is received before award is made and the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition. However, a late modification of an otherwise successful offer that makes its terms more favorable to the Government will be considered at any time it is received and may be accepted.

(3) If an emergency or unanticipated event interrupts normal Government processes so that offers cannot be received at the Government office designated for receipt of offers by the exact time specified in the solicitation, and urgent Government requirements preclude amendment of the solicitation or other notice of an extension of the closing date, the time specified for receipt of offers will be deemed to be extended to the same time of day specified in the solicitation on the first work day on which normal Government processes resume.

(4) Offerors may withdraw their offers by written notice to the Government received at any time before award.

(d) *Contract award (not applicable to Invitation for Bids)*. The Government intends to evaluate offers and award a contract without discussions with Offerors. Therefore, the Offeror’s initial offer should contain the Offeror’s best terms. However, the Government reserves the right to conduct discussions, if necessary. The Government may reject any or all offers if such action is in the public interest, accept other than the lowest offer, and waive informalities and minor irregularities in offers received.

(e) *Debriefings*. If a postaward debriefing is given to requesting Offerors, the Government will disclose the following information, if applicable:

(1) The agency’s evaluation of the significant weak or deficient factors in the debriefed Offeror’s offer.

(2) The overall evaluated cost or price and technical rating of the successful Offeror and the debriefed Offeror and past performance information on the debriefed Offeror.

(3) The overall ranking of all Offerors when any ranking was developed by the agency during source selection.

(4) A summary of the rationale for award.

(5) For acquisitions of commercial products, the make and model of the product to be delivered by the successful Offeror.

(6) Reasonable responses to relevant questions posed by the debriefed Offeror as to whether the agency followed source-selection procedures set forth in the solicitation, applicable regulations, and other applicable authorities.

(End of provision)

52.216-1 (DEV) Type of Contract (APR 1984) (DEVIATION NOV 2025)

The Government contemplates award of a fixed-price [Contracting Officer insert specific type of contract] contract resulting from this solicitation.

(End of provision)

52.217-3 (DEV) Evaluation Exclusive of Options (APR 1984) (DEVIATION NOV 2025)

The Government will evaluate offers for award purposes by including only the price for the basic requirement; i.e., options will not be included in the evaluation for award purposes.

(End of provision)

52.225-2 Buy American Certificate (Oct 2022)

(a)(1) The Offeror certifies that each end product, except those listed in paragraph (b) of this provision, is a domestic end product and that each domestic end product listed in paragraph (c) of this provision contains a critical component.

(2) The Offeror shall list as foreign end products those end products manufactured in the United States that do not qualify as domestic end products. For those foreign end products that do not consist wholly or predominantly of iron or steel or a combination of both,

the Offeror shall also indicate whether these foreign end products exceed 55 percent domestic content, except for those that are COTS items. If the percentage of the domestic content is unknown, select "no".

- (3) The Offeror shall separately list the line item numbers of domestic end products that contain a critical component (see FAR 25.105).
- (4) The terms "commercially available off-the-shelf (COTS) item," "critical component," "domestic end product," "end product," and "foreign end product" are defined in the clause of this solicitation entitled "Buy American-Supplies."

(b) Foreign End Products:

Line item No.	Country of origin	Exceeds 55% domestic content (yes/no)
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

[List as necessary]

(c) Domestic end products containing a critical component:

Line Item No. _____

[List as necessary]

- (d) The Government will evaluate offers in accordance with the policies and procedures of part 25 of the Federal Acquisition Regulation.
- (End of provision)

52.233-2 (DEV) Service of Protest (SEP 2006) (DEVIATION NOV 2025)

- (a) Protests, (as defined in FAR 33.102), that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), must be served on the Contracting Officer identified in the solicitation by obtaining written and dated acknowledgment of receipt from them.
- (b) The copy of any protest must be received in the office designated above within one day of filing a protest with the GAO.
- (End of provision)

52.252-5 Authorized Deviations in Provisions (Nov 2020)

- (a) The use in this solicitation of any Federal Acquisition Regulation (48 CFR Chapter 1) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the date of the provision.
- (b) The use in this solicitation of any VA Acquisition Regulation (VAAR) [insert regulation name] (48 CFR Chapter 8) provision with an authorized deviation is indicated by the addition of "(DEVIATION)" after the name of the regulation.
- (End of clause)

852.233-71 ALTERNATE PROTEST PROCEDURE (OCT 2018)

- (a) As an alternative to filing a protest with the Contracting Officer, an interested party may file a protest by mail or electronically with: Executive Director, Office of Acquisition and Logistics, Risk Management and Compliance Service (003A2C), Department of Veterans Affairs, 810 Vermont Avenue, NW, Washington, DC 20420 or Email: EDProtests@va.gov.
- (b) The protest will not be considered if the interested party has a protest on the same or similar issue(s) pending with the Contracting Officer.
- (End of provision)

E.1 ADDENDUM TO FAR 52.212-1 – INSTRUCTIONS TO OFFERORS – COMMERCIAL ITEMS

Provisions that are incorporated by reference (by Citation Number, Title, and Date), have the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available.

The following provisions are incorporated into 52.212-1 as an addendum to this solicitation.

- A. GENERAL INSTRUCTIONS:** This section provides general guidance for preparing the proposal, as well as specific instructions on the format and content of the proposal. The offeror's proposal must include all data and information requested and must be submitted in accordance with these instructions. Any offeror who submits an incomplete package may have its proposal considered to be unacceptable and removed from consideration for contract award. The offer shall be compliant with the requirements as stated in the Solicitation. Non-compliance with the instructions to the Solicitation may result in an unfavorable proposal evaluation and may be grounds to eliminate the proposal from consideration for contract award.

Offeror should thoroughly review the specifications and become familiar with the requirement prior to submitting a proposal. Failure to understand the contract requirements shall not relieve the successful offeror from performing in accordance with the strict meaning and intent of the specifications.

Submission of offerors. Offeror must complete and return a complete package of all items required prior to the time specified in the Solicitation to be considered for award.

Please review the following items before submitting your proposal:

- ☐ Have you completed and sign the 1449?
- ☐ Have you acknowledged any amendment (s), if applicable?
- ☐ Have you included the requested information required for responding to the non-price and price evaluation factors?
- ☐ Have you completed and signed the VAAR 852.219-75 VA NOTICE OF LIMITATIONS ON SUBCONTRACTING-CERTIFICATE OF COMPLIANCE FOR SERVICES AND CONSTRUCTION (NOV 2022)?
- ☐ Have you submitted two or more completed Past Performance Questionnaires?

- B. TYPE OF ACQUISITION:** This acquisition is a competitive solicitation. Award will be made to the offeror who represents the best value to the Government.
- C. PERIOD OF ACCEPTANCE OF OFFERS:** The Offeror agrees to hold prices in its offer firm for a period of sixty (60) calendar days from the closing date of the solicitation.
- D. POST-AWARD/PRE-PERFORMANCE CONFERENCE:** A post-award/pre-performance conference will be scheduled by the Contracting Officer (CO) and held prior to the commencement of any work. The offeror and/or their duly authorized representative(s) is/are highly encouraged to attend the post-award/pre-performance conference. The CO and COR shall meet with the Contractor to discuss details of the contract, the Guards sites and schedules, emergency contact information, handbook, and any other information pertinent to the performance of the contract.
- E. POINTS OF CONTACT (POC):** Written requests for clarification, questions, and/or concerns may be sent to the following:

Ralph Crum
Contracting Officer
Ralph.Crum@va.gov

F. VENDOR SITE VISIT

A Site Visit will be held at the National Memorial Cemetery of Arizona, 2929 E Pinnacle Peak Road, Phoenix Arizona 85024.

The Vendor Site Visit will be held on **May13, 2026, at 9:30AM** local time.

Due to the room size limitations, offerors are encouraged to notify the Contracting Officer of their plan to attend. Notification should include Company Name, Address, Names of Attendees, and Phone No. Attendance Notification should be received by the Contracting Officer and COR via e-mail ralph.crum@va.gov and lee.castaneda@va.gov no later than **May 12, 2026**, at 5PM CST.

Any questions must be submitted via email by **May 15, 2026**, at 5PM CST to: Ralph.Crum@va.gov. All questions shall be addressed via an amendment to the Solicitation.

Safety and Privacy Concerns: Participants should dress in comfortable clothing suited for indoor and outdoor conditions. Closed-toe shoes are encouraged for safety reasons.

NOTE 1: Questions raised during the site visit must be written and will be provided to the Contracting Officer for dissemination to all potential bidders. All questions raised after the site visit must be submitted via email by **May 15, 2026, at 5PM CST** to: Ralph.Crum@va.gov.

G. PROPOSAL SUBMISSION INSTRUCTIONS:

Submission via email to: Ralph.Crum@va.gov
Subject line: 36C78626Q50131 _Company Name
Submission deadline: May 27, 2026, 5PM CST

Do not make any changes to the files or the format of the files of the Solicitation and any attachments. Offerors who make any changes without prior written consent from the CO may be eliminated from further consideration.

- It is the offeror's responsibility to ensure that documents are complete, and submission is viewable/readable and arrives to the CO/CS by the date and time required.
- Please complete both the price schedule in the solicitation document.
- If any required documents are omitted with submission, the offer may be precluded from further consideration.

(End of Addendum to 52.212-1)

E.2 52.212-2 EVALUATION – COMMERCIAL ITEMS (OCT 2014)

- (A) BASIS OF AWARD: This procurement is a best value source selection and is being conducted pursuant to FAR Part 12 procedures. The Government intends to award a single contract as a result of this solicitation, based on the evaluation factors listed below and whose offer represents the best value to

the Government. A contract may be awarded to the offeror whose offer conforms to the solicitation's requirements (to include all stated terms, conditions, representations, certifications, and all other information required in the Performance Work Statement of this solicitation) and is judged by an overall assessment of the evaluation factors to represent the most advantageous to the Government. As part of making the assessment, a comparative analysis will be performed to determine whether exceeding the minimum requirements at an associated price provides the best value to the Government.

- (B) AWARD FOR ALL OF THE WORK. The Government intends to a single award contract as a result of this solicitation. Offers received for less than the stated number of items listed in the schedule may be considered ineligible for award. The Government, however, reserves the right to make an award for any item from any offeror for a quantity less than or equal to the quantity offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

(C) EVALUATION PROCESS:

Evaluation Factors. Evaluation of offers will be made using procedures under FAR Part 12.203(c)(2). Offers will be evaluated in accordance with the following factors:

Factor 1: Past Performance

Factor 2: Technical Capability

Factor 3: Price

FACTOR 1 - Past Performance: The Government will evaluate the Past Performance of the Prime vendor (i.e. the offeror) proposed to perform a major portion of the requirement. The past performance evaluation factor assesses the degree of confidence the Government has in an offeror's ability to supply products and services that meet users' needs, based on a demonstrated record of performance. For evaluation of Past Performance, the Government may use information from any sources available to it including, but not limited to, the Contract Performance Assessment Reporting System (CPARS) and the attached **Past Performance Questionnaire**.

Past performance questionnaire (see attachment). Offerors should provide no less than two (2) relevant past performance information for work performed comparable to the **National Memorial Cemetery of Arizona** under contracts completed during the last five (5) years. The Government reserves the right to verify statements and representations made in an offeror's proposal. The offeror may include Federal, State and Local Government and private sector contracts. However, the Government will evaluate contract(s) the offeror has/had with a Federal Government Agency more favorably.

To obtain information, the Government may contact the points of contact listed by offerors, however, the Government is not required to contact the points of contact provided by offerors and may limit the number of references it decides to contact. The Government is also free to contact references other than those provided by the offeror to evaluate past performance of offerors.

FACTOR 2 – Technical Capability:

The Offeror shall demonstrate understanding of the requirements of the Performance Work Statement and produce an offer that will meet those objectives. The offer will be evaluated based on the proposed approach to performing the work. Please provide documentation evidencing: (1) proposed performance work schedule; (2) materials/uniforms (include photos) to be used at the cemetery; (3) list of equipment to be used at the cemetery to include of patrol vehicle(s)(include photos); (4) a quality control plan to monitor the Contractor's performance in meeting the cemetery's goals; (5) Qualification of Technical Personnel (training, experience, certifications, licenses, permits, insurance).

FACTOR 3 - Price: Price analysis will be used to determine that the prices are fair and reasonable in accordance with FAR Part 12.204(a).

- (D) OPTIONS: The Government will evaluate proposals for award purposes by adding the total price for all options to the total price for the basic requirement. The Government may determine that a proposal is unacceptable if the option prices are significantly unbalanced or if the proposed price for the basic requirement or any option exceeds the amount of funding available for any of those requirements. Evaluation of options shall not obligate the Government to exercise the option(s).

(End of provision)

